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Washington, Wednesday, March 27, 1957

TITLE 3—THE PRESIDENT

EXECUTIVE ORDER 10704

CHANGE IN THE MEMBERSHIP OF THE PRESIDENT'S COUNCIL ON YOUTH FITNESS

By virtue of the authority vested in me as President of the United States, it is ordered as follows:

1. The President's Council on Youth Fitness shall hereafter be composed of the Vice President of the United States, who shall be the Chairman of the Council, the Secretary of Defense, the Secretary of the Interior, the Secretary of Agriculture, the Secretary of Labor, and the Secretary of Health, Education, and Welfare.

2. Section 1 of Executive Order No. 10673 of July 16, 1956, which established the President's Council on Youth Fitness and designated the members thereof, is amended accordingly.

DWIGHT D. EISENHOWER

THE WHITE HOUSE,
March 25, 1957.

[F. R. Doc. 57-2409; Filed, Mar. 26, 1957; 9:28 a. m.]

TITLE 10—ATOMIC ENERGY

Chapter I—Atomic Energy Commission

PART 9—PUBLIC RECORDS

INCLUSIONS

In F. R. Document 56-10096, appearing in the issue for Saturday, December 8, 1956, at page 9743, the introductory paragraph of § 9.3 should be corrected to read as follows:

§ 9.3 *Inclusions.* Except as excluded by § 9.4 of this chapter, the following matters are included in the public records:

* * * * *

Dated at Washington, D. C., this 20th day of March 1957.

DAVID F. SHAW,
Assistant General Manager.

[F. R. Doc. 57-2341; Filed, Mar. 26, 1957; 8:51 a. m.]

TITLE 25—INDIANS

Chapter I—Bureau of Indian Affairs, Department of the Interior

Subchapter T—Patents in Fee, Competency Certificates, Sales and Reinvestment of Proceeds

PART 242—OSAGE ROLL, CERTIFICATES OF COMPETENCY, AND OSAGE LANDS

SUBPART B—CHANGING DESIGNATION OF HOMESTEAD ALLOTMENTS, EXCHANGES OF RESTRICTED LANDS, AND PARTITION PROCEEDINGS

Subpart B of Part 242 is revised in its entirety to read as follows:

Sec.
242.51 Definitions.
242.52 Application for change in designation of homestead.
242.53 Order to change designation of homestead.
242.54 Exchanges of restricted lands.
242.55 Institution of partition proceedings.
242.56 Partition records.
242.57 Approval of deeds or other instruments vesting title on partition and payment of costs.
242.58 Disposition of proceeds of partition sales.

AUTHORITY: §§ 242.51 to 242.58 issued under R. S. 161; 5 U. S. C. 22. Interpret or apply 62 Stat. 18; 25 U. S. C. 331 note.

§ 242.51 *Definitions.* When used in this subpart:

(a) "Homestead" means the restricted nontaxable lands, not exceeding 160 acres, allotted to an enrolled member of the Osage Tribe pursuant to the act of June 28, 1906 (34 Stat. 539), or the restricted surplus lands designated in lieu thereof pursuant to the act of May 25, 1918 (40 Stat. 578).

(b) "Surplus land" means those restricted lands, other than the homestead, allotted to an enrolled member of the Osage Tribe pursuant to the act of June 28, 1906 (34 Stat. 539).

§ 242.52 *Application for change in designation of homestead.* Any Osage allottee or the legal guardian thereof may make application to change his homestead for an equal area of his surplus land. The application shall give in detail the reasons why such change is

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FEDERAL REGISTER

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CFR SUPPLEMENTS
(As of January 1, 1957)

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Title 24 ($1.00)
Title 32, Parts 1100 to end ($0.50)

Previously announced: Title 3, 1956 Supp. ($0.40); Title 7, Parts 900–959 ($0.50), Part 960 to end ($1.25); Title 9 ($0.70); Title 17 ($0.60); Title 18 ($0.50); Title 20 ($1.00); Title 21 ($0.50); Title 26, Parts 1–79 ($0.35), Parts 80–169 ($0.50), Parts 170–182 ($0.35), Parts 183–299 ($0.30), Part 300 to end, Ch. I, and Title 27 ($1.00); Title 32, Parts 700–799 ($0.50); Title 39 ($0.50).

Order from Superintendent of Documents, Government Printing Office, Washington 25, D. C.

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desired and shall be submitted to the Osage Indian Agency on the form "Application to Change Designation of Homestead."

§ 242.53 *Order to change designation of homestead.* The application of an Osage allottee, or his legal guardian, may be approved by the Secretary of the Interior, or his authorized representative, and an order issued to change designation of homestead, if it is found that the applicant owns an equal area of surplus land. The expense of recording the order shall be borne by the applicant. The order to change designation shall be made on the form "Order to Change Designation of Homestead."

§ 242.54 *Exchanges of restrictive lands.* Upon written application of the Indians involved, the exchange of restricted lands between adult Indians, and between adult Indians and non-Indians, may be approved by the Secretary of the Interior, or his authorized representative. Title to all lands acquired under this part by an Indian who does not have a certificate of competency shall be taken by deed containing a clause restricting alienation or encumbrance without the consent of the Secretary, or his authorized representative. In case of diffeences in the appaised value of lands under consideration for exchange, the application of an Indian for funds to equalize such differences may be approved to the extent authorized by § 222.8 of this chapter.

§ 242.55 *Institution of partition proceedings.* (a) Prior authorization should be obtained from the Secretary, or his authorized representative, before the institution of proceedings to partition the lands of deceased Osage allottees in which any interest is held by an Osage Indian not having a certificate of competency. Requests for authority to institute such partition proceedings shall contain a description of the lands involved, the names of the several owners and their respective interests and the reasons for such court action. Authorization may be given for the institution of partition proceedings in a court of competent jurisdiction when it appears to the best interest of the Indians involved to do so and the execution of voluntary exchange deeds is impracticable.

(b) When it appears to the best interest of the Indians to do so, the Secretary's, or his authorized representative's, authorization to institute partition proceedings may require that title to the lands be quieted in the partition action in order that the deeds issued pursuant to the proceedings shall convey good and merchantable title to the grantee therein. (See section 6, 37 Stat. 87.)

§ 242.56 *Partition records.* Upon completion of an action in partition, a copy of the judgment roll showing schedule of costs and owelty moneys having accrued to or from the several parties, together with deeds, or other instruments vesting title on partition, in triplicate, shall be furnished to the Osage Agency. The original allotment number shall follow the legal description on all instruments vesting title. When a grantee is a member of the Osage Tribe who has not received a certificate of competency, deeds or other instruments vesting title shall contain the following clause against alienation:

Subject to the condition that while title to the above-described lands shall remain in the grantee or his Osage Indian heirs or devisees who do not have certificates of competency, the same shall not be alienated or encumbered without approval of the Secretary of the Interior or his authorized representative.

§ 242.57 *Approval of deeds or other instruments vesting title on partition and payment of costs.* Upon completion of the partition proceedings in accordance with the law and in conformity with the regulations in this subpart, the Secretary, or his authorized representative, may approve the deeds, or other instruments vesting title on partition, and may disburse from the restricted (accounts) funds of the Indians concerned, such amounts as may be necessary for payment of their share of court costs, attorney fees, and owelty moneys.

§ 242.58 *Disposition of proceeds of partition sales.* Owelty moneys due members of the Osage Tribe who do not have certificates of competency shall be paid into the Treasury of the United States and placed to the credit of the Indians upon the same conditions as attach to segregated shares of the Osage national fund.

FRED A. SEATON,
Secretary of the Interior.

MARCH 20, 1957.

[F. R. Doc. 57-2312; Filed, Mar. 26, 1957; 8:45 a.m.]

TITLE 29—LABOR

Chapter V—Wage and Hour Division, Department of Labor

PART 684—HOOKED RUG INDUSTRY IN PUERTO RICO

PART 687—HOSIERY INDUSTRY IN PUERTO RICO

PART 699—TEXTILE AND TEXTILE PRODUCTS INDUSTRY IN PUERTO RICO

MISCELLANEOUS AMENDMENTS

On January 5, 1957, pursuant to section 5 of the Fair Labor Standards Act of 1938 (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), the Secretary of Labor by Administrative Order No. 475 (22 F. R. 150) appointed, convened and gave notice of the hearing of Industry Committee No. 28-B for the Textile and Textile Products Industry in Puerto Rico, and Industry Committee No. 28-C for the Hosiery Industry in Puerto Rico. The Committees were directed to recommend the minimum rate or rates to be paid under section 6 (c) of the act to employees in the Textile and Textile Products Industry and in the Hosiery Industry who are engaged in commerce or in the production of goods for commerce.

Subsequent to an investigation and a hearing, conducted pursuant to the notice, the Committees filed with the Administrator a report containing their findings with respect to the matters referred to them. Accordingly, as authorized and required by section 8 of the act and General Order No. 45-A of the Secretary (15 F. R. 3290), (1) the recommendations of these committees are hereby published in the following amendments to the Code of Federal Regulations, and (2) effective April 12, 1957, Part 684 of Title 29, Code of Federal Regulations is deleted, and Parts 687 and 699 of Title 29, Code of Federal Regulations, are amended to read as follows:

1. Part 687 is amended to read as follows:

Sec.
687.1 Definition of the industry.
687.2 Wage rates.
687.3 Notices.

AUTHORITY: §§ 687.1 to 687.3 issued under sec. 8, 52 Stat. 1064, as amended; 29 U. S. C. 208. Interpret or apply sec. 5, 52 Stat. 1062, as amended; 29 U. S. C. 205.

§ 687.1 *Definition of the industry.* The hosiery industry in Puerto Rico, to which this part shall apply, is defined as follows: The manufacture and processing of full-fashioned and seamless hosiery, including, among other processes, the knitting, seaming, looping, dyeing, clocking, and all phases of finishing hosiery, but not including the manufacture and processing of yarn or thread.

§ 687.2 *Wage rates.* (a) Wages at a rate of not less than 65 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the hosiery industry in Puerto Rico who is engaged in commerce or in the production of goods for commerce and who is engaged in the full-fashioned hosiery classification, which is defined as the manufacturing or processing of full-fashioned hosiery, including among other processes the knitting, seaming, dyeing, clocking, and all phases of finishing full-fashioned hosiery.

(b) Wages at a rate of not less than 63 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the hosiery industry in Puerto Rico who is engaged in commerce or in the production of goods for commerce and who is engaged in the seamless hosiery classification, which is defined as the manufacturing or processing of seamless hosiery of all types, including among other processes the knitting, looping, dyeing, clocking, and all phases of finishing seamless hosiery.

§ 687.3 *Notices.* Every employer subject to the provisions of § 687.2 shall post in a conspicuous place in each department of his establishment where employees subject to the provisions of § 687.2 are working such notices of this part as shall be prescribed from time to time by the Administrator of the Wage and Hour Division, United States Department of Labor, and shall give such other notice as the Administrator may prescribe.

2. Part 699 is amended to read as follows:

Sec.
699.1 Definition of the industry.
699.2 Wage rates.
699.3 Notices.

AUTHORITY: §§ 699.1 to 699.3 issued under sec. 8, 52 Stat. 1064, as amended; 29 U. S. C. 208. Interpret or apply sec. 5, 52 Stat. 1062, as amended; 29 U. S. C. 205.

§ 699.1 *Definition of the industry.* The textile and textile products industry in Puerto Rico, to which this part shall apply, is defined as follows: The preparation of textile fibers, including the ginning and compressing of cotton; the manufacture of batting, wadding, and filling; the manufacture of yarn, cordage, twine, felt, woven and knitted fabrics, and lace-machine products, from cotton, jute, sisal, coir, maguey, silk, rayon, nylon, wool, or other vegetable, animal, or synthetic fiber, or from mixtures of these fibers; and the manufacture of blankets, textile bags, mattresses, quilts, pillows, hairnets, oilcloth and artificial leather containing a textile base, woven carpets and rugs, and hooked or punched rugs and carpeting: *Provided, however,* That the definition shall not include the chemical manufacturing of synthetic fiber and such related processing of yarn as is conducted in establishments manufacturing synthetic fiber.

§ 699.2 *Wage rates.* (a) Wages at a rate of not less than one dollar an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the textile and textile products industry who is engaged in commerce or in the production of goods for commerce and who is engaged in the mattress and pillow classification, which is defined as the manufacture of mattresses and pillows.

(b) Wages at rates not less than the amounts specified in the subparagraphs below shall be paid by every employer to each of his employees engaged in the manufacture of hooked or punched rugs and carpeting in Puerto Rico who is engaged in commerce or in the production of goods for commerce.

(1) To employees so engaged who perform multiple-needle power-driven machine operations, which are defined as the punching or tufting of rugs and carpeting with multiple-needle machines containing five or more needles, including the operation of the machine, the work of the assistant or helper thereon, and the work of the maintenance employees who set up or repair these machines, wages at the rate of not less than 65 cents per hour shall be paid.

(2) To employees so engaged who perform hand-guided power-driven machine operations, which are defined as the punching or tufting of rugs and carpeting with hand-guided power-driven machines containing less than five needles including the operation of the machine and the work of maintenance employees who set up or repair these machines, wages at the rate of not less than 53 cents per hour shall be paid.

(3) To employees so engaged who perform any other operations in the manufacture of hooked or punched rugs and carpeting except the operations listed in subparagraphs (1) and (2) of this paragraph, wages at the rate of not less than 49 cents per hour shall be paid.

(c) Wages at a rate of not less than 52 cents per hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the textile and textile products industry in Puerto Rico who is engaged in commerce or in the production of goods for commerce and who is engaged in the bag cleaning and repairing classification, which is defined as the cleaning, mending and repairing of bags made from burlap, cotton or other textile materials.

(d) Wages at a rate of not less than 56 cents per hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the textile and textile products industry in Puerto Rico who is engaged in commerce or in the production of goods for commerce and who is engaged in the general classification, which is defined as the preparation of textile fibers, including the ginning and compressing of cotton; the manufacture of batting, wadding, and filling; the manufacture of yarn, cordage, twine, felt, woven and knitted fabrics and lace-machine products, from cotton, jute, sisal, coir, maguey, silk, rayon, nylon, wool, or other vegetable, animal, or synthetic fiber, or from mixtures of these fibers; and the manufacture of blankets, textile bags (except cleaning and repairing of bags), quilts, hairnets, oilcloth and artificial leather containing a textile base, and woven carpets and rugs: *Provided, however,* That the definition shall not include the chemical manufacturing of synthetic fiber and such related processing of yarn as is conducted in establishments manufacturing synthetic fiber.

§ 699.3 *Notices.* Every employer subject to the provisions of § 699.2 shall post in a conspicuous place in each department of his establishment where employees subject to the provisions of § 699.2 are working such notices of this part as shall be prescribed from time to time by the Administrator of the Wage and Hour Division, United States Department of Labor, and shall give such other notice as the Administrator may prescribe.

Signed at Washington, D. C., this 21st day of March 1957.

NEWELL BROWN,
Administrator.

[F. R. Doc. 57-2354; Filed, Mar. 26, 1957; 8:53 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[FCC 57-264]

[Rules Amdt. 3-61]

PART 3—RADIO BROADCAST SERVICES

ESTABLISHMENT OF A LICENSE PERIOD FOR TELEVISION BROADCAST STATIONS LOCATED IN GUAM

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 20th day of March 1957.

The Commission has under consideration the desirability of making certain changes in Part 3 of its rules and regulations to include Guam in the schedule setting forth the expiration date for licenses of television broadcast stations.

Section 3.630 sets forth the expiration dates for licenses of television broadcast stations located in the United States, Puerto Rico, Virgin Islands, Alaska and Hawaii. The list was so arranged that licenses of stations in the same general geographical area would expire at the same time.

The Commission has authorized the construction of a television broadcast station on the Island of Guam, and it is necessary to establish a license period for this station in order that a license may be issued. Guam, a western U. S. possession, is being included in the paragraph of § 3.630 that contains the other western U. S. possessions.

The amendment adopted herein is procedural in nature, and, therefore, prior publication of notice of proposed rule making under the provisions of section 4 of the Administrative Procedure Act is unnecessary.

The amendment adopted herein is issued pursuant to authority contained in sections 4 (i), 303 (r) and 307 (d) of the Communications Act of 1934, as amended.

It is ordered, That, effective March 20, 1957, § 3.630 (a) (16) of the Commission's rules and regulations is amended to read as follows:

(16) For stations located in Washington, Oregon, Alaska, Guam and Hawaii, February 1, 1960.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies secs. 301, 303, 307, 48 Stat. 1081, 1082, 1083; 47 U. S. C. 301, 303, 307)

Released: March 21, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-2343; Filed, Mar. 26, 1957; 8:52 a. m.]

[FCC 57-285]

[Rules Amdts. 11-9, 16-13]

PART 11—INDUSTRIAL RADIO SERVICES

PART 16—LAND TRANSPORTATION RADIO SERVICES

CONELRAD RADIO ALL CLEAR MESSAGE

At a session of the Federal Communications Commission held at its offices in Washington, D. C. on the 20th day of March 1957;

The Commission, having before it for consideration the CONELRAD Radio All Clear Message as set forth in Parts 11 and 16 of the Commission's rules and the Commission's order of March 6, 1957 (FCC 57-221), amending the wording of the CONELRAD Radio All Clear Message;

It appearing that a need for the modification of this message was outlined at a White House Conference where it was made clear that the present CONELRAD "All Clear" message is confusing in that it could lead the public to believe a Civil Defense "All Clear" had been issued when in fact radiological hazards might still exist; and

It further appearing that the Commission representatives at this conference agreed to recommend substitute phraseology for the CONELRAD Radio "All Clear" message which would avoid the danger of misunderstanding; and,

It further appearing that since this modification of the CONELRAD "All Clear" message is an editorial and not a substantive change, and therefore, cannot adversely affect any person, notice and public procedure with respect thereto, as prescribed in section 4 (a) of the Administrative Procedure Act, is unnecessary; now therefore,

It is ordered, Pursuant to sections 303 (f) and 303 (r) of the Communications Act of 1934, as amended, that effective June 1, 1957, § 11.705 of the Commission's rules be amended to read as follows:

§ 11.705 *Radio All Clear.* The CONELRAD Radio All Clear will be initiated only by the Air Division (Defense) Commander or higher military authority and will be disseminated over the same channels as the CONELRAD Radio Alert. Broadcast stations will transmit the CONELRAD Radio All Clear message on normally assigned frequencies as follows:

The CONELRAD operating procedures have been ordered discontinued. All radio stations are authorized to return to normal operation on their regularly assigned frequencies:

I repeat—

The CONELRAD operating procedures have been ordered discontinued. All radio stations are authorized to return to normal operation on their regularly assigned frequencies.

Radio stations and systems licensed in the Industrial Radio Services may resume normal operation when the CONELRAD Radio All Clear message is received unless otherwise restricted by order of the Federal Communications Commission.

It is further ordered, Pursuant to sections 303 (f) and 303 (r) of the Communications Act of 1934, as amended, that effective June 1, 1957, § 16.605 of the Commission's rules be amended to read as follows:

§ 16.605 *Radio All Clear.* The CONELRAD Radio All Clear will be initiated only by the Air Division (Defense) Commander or higher military authority and will be disseminated over the same channels as the CONELRAD Radio Alert. Broadcast stations will transmit the CONELRAD All Clear message on normally assigned frequencies as follows:

The CONELRAD operating procedures have been ordered discontinued. All radio stations are authorized to return to normal operation on their regularly assigned frequencies:

I repeat—

The CONELRAD operating procedures have been ordered discontinued. All radio stations are authorized to return to normal operation on their regularly assigned frequencies.

Radio stations and systems licensed in the Land Transportations Radio Services may resume normal operations when the Radio All Clear message is received, unless otherwise restricted by order of the Federal Communications Commission.

It is further ordered, That the Commission's order of March 6, 1957,[1] effective June 1, 1957, amending the CONELRAD Radio All Clear Message, is superseded by this order, and is, therefore, rescinded.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: March 22, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-2344; Filed, Mar. 26, 1957; 8:52 a. m.]

[Rules Amdt. 14-3]

PART 14—PUBLIC FIXED STATIONS AND STATIONS OF THE MARITIME SERVICES IN ALASKA

DEFINITION OF COMMON CARRIER OR CARRIER

The Commission having under consideration the desirability of making an editorial change in Part 14 of its rules and regulations; and

It appearing, that section 3 (h) of the Communications Act of 1934, as amended, sets forth a definition of "common carrier" or "carrier", and that it is desirable that such definition be included in Part 14 of the Commission's rules; and

It further appearing, that the amendment adopted herein is editorial in nature, and, therefore, prior publication of Notice of Proposed Rule Making under the provisions of section 4 of the Administrative Procedure Act is unnecessary, and the amendment may become effective immediately; and

It further appearing, that the amendment adopted herein is issued pursuant to authority contained in sections 4 (i), 5 (d) (1) and 303 (r) of the Communications Act of 1934, as amended, and section 0.341 (a) of the Commission's Statement of Organization, Delegations of Authority and Other Information;

It is ordered, This 18th day of March, 1957, that effective March 20, 1957, § 14.2 is amended by adding a paragraph (i) as follows:

(i) *"Common carrier" or "carrier".* "Common carrier" or "carrier" means any person engaged as a common carrier for hire, in interstate or foreign communication by wire or radio or in interstate or foreign radio transmission of energy, except where reference is made to common carriers not subject to the Communications Act of 1934, as amended; but a person engaged in radio broadcasting shall not, insofar as such person is so engaged, be deemed a common carrier.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; sec. 5, 66 Stat. 713; 47 U. S. C. 303, 155)

Released: March 21, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary,

[F. R. Doc. 57-2345; Filed, Mar. 26, 1957; 8:52 a. m.]

[Rules Amdt. 18-12]

PART 18—INDUSTRIAL, SCIENTIFIC, AND MEDICAL SERVICE

EFFECTIVE DATE

The Commission having under consideration the desirability of making certain editorial changes in Footnote 1 to § 18.1 of its rules and regulations; and

It appearing that the Amendment adopted herein is editorial in nature, and, therefore, prior publication of notice of proposed rule making under the provisions of section 4 of the Administrative Procedure Act is unnecessary, and the amendments may become effective immediately; and

It further appearing, that the amendment adopted herein is issued pursuant to authority contained in sections 4 (i), (5) (d) (1) and 303 (r) of the Communications Act of 1934, as amended, and section 0.341 (a) of the Commission's statement of organization, delegations of authority and other information.

It is ordered, This 20th day of March 1957, effective March 21, 1957, Footnote 1 to § 18.1 is amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; sec. 5, 66 Stat. 713; 47 U. S. C. 303, 155)

Released: March 21, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

Footnote 1 to § 18.1 is amended to change certain section references in order to conform to a recently adopted revision of Part 18.

[1] Not filed or published in the FEDERAL REGISTER.

As amended Footnote 1 to § 18.1 reads as follows:

[1] The effective date of Part 18 with respect to electric arc welding devices using radio frequency energy is suspended until action is completed in the Docket No. 11467 proceeding with respect to these devices: *Provided*, That, in the event of interference from electric arc welding devices using radio frequency energy to any authorized radio service, steps to remedy such interference shall promptly be taken (except that, in case of interference to receivers arising from direct intermediate frequency pickup by such receivers of the fundamental frequency emissions of certified electric arc welding equipment using radio frequency energy, this provision with respect to interference shall not apply): *And further provided*, however, That equipment manufactured after September 1, 1952 shall be subject to the same technical limitations and standards as set forth for industrial heating equipment in §§ 18.101 to 18.108, inclusive, except that such equipment need not be operated within a shielded room or space but in lieu thereof shall be operated with sufficient shielding to limit the radiation to the value prescribed in § 18.102: *And further provided*, That radio frequency stabilized electric arc welding equipment designed for operation on ISM frequencies may be type approved and operated in accordance with the provisions of § 18.31 (c) of the rules relating to miscellaneous equipment: *And further provided*, That broad band type of emissions from arc welding equipment shall be measured by an instrument having performance characteristics similar to the "Proposed American Standards Specification for a Radio Noise Meter—0.15 to 25 Megacycles/second" dated March 1950, published by the American Standards Association Committee on Radio Electrical Coordination C63, Quasi-peak values of field strength shall be measured and used in determining compliance with § 18.102. Instruments not having characteristics similar to the above mentioned standards may be used provided suitable correlation factors are used to adjust the field strength readings to values which would be obtained with an instrument having the desired characteristics.

The certification required by § 18.101 may be based upon field strength measurements made by the manufacturer of the equipment at locations other than the one where the equipment is in use provided such certification includes a statement by the operator of the equipment that the equipment covered thereby has been installed and is being operated in conformity to the instructions issued by the manufacturer.

[F. R. Doc. 57-2346; Filed, Mar. 26, 1957; 8:52 a. m.]

[Docket 11442; FCC 57-284]

[Rules Amdt. 18-13]

PART 18—INDUSTRIAL, SCIENTIFIC, AND MEDICAL SERVICE

INDUSTRIAL HEATING EQUIPMENT

In the matter of amendment of Part 18 to establish a type acceptance procedure for industrial heating equipment and in general to reorganize the regulations applicable to industrial heating equipment.

1. On July 8, 1955, the Commission issued a notice of proposed rule making to amend Part 18 of the rules concerning industrial heating equipment. It was proposed to (1) revise the certification procedure to clearly specify when measurements made on a prototype may be accepted and when measurements on the industrial heating equipment at its point of operation must be made, (2) strengthen the certification procedure by requiring that each certification for industrial heating equipment be renewed periodically, (3) add a standard for conducted interference along power lines connected to industrial heating equipment, (4) make the microwave frequencies allocated for industrial, scientific, and medical equipment by Part 2 available for industrial heating equipment, (5) add 915 Mc to the frequencies now available for medical diathermy and for miscellaneous equipment, (6) extend the radiation limits now applicable to ISM equipment to certain of the microwave frequencies and (7) rewrite and rearrange the rules in the interest of increased readability and clarity.

2. In general the comments support the rewording and rearrangement of the rules. The comments also support the Commission's proposal that radiation of radio frequency energy from any industrial heating equipment on any frequency below 5775 mc, except ISM frequencies, be suppressed so that the radiated field strength does not exceed 10 microvolts per meter at a distance of one mile or more from the equipment. This requirement is included in the rules set forth below.

3. The Commission proposed two types of certification. The first, designated as "Manufacturer's Certification of FCC Type Acceptance", provided for the issuance of a certificate by the manufacturer to the purchaser of industrial heating equipment. The basis for the certificate were measurements made on a prototype by the manufacturer, such measurements having been reviewed by the Commission and found to be satisfactory evidence of compliance with the requirements of the rules. It was proposed that the Manufacturer's Certification of FCC Type Acceptance be applicable only to industrial heating equipment sold as a completely self contained unit which has been completely assembled at the manufacturer's plant. The second type of certification proposed by the Commission was designated as "Engineers' Certification". It provided for the issuance of a certificate of compliance by an engineer based on measurements made at the installation site of the industrial heating equipment.

4. Comments directed to the two types of certification proposed by the Commission indicate that there are a wide variety of practices involved in the construction of industrial heating equipment. A particularly large segment of equipments are assembled at the operator's plant using component parts supplied by numerous manufacturers. These "composite" equipments may be duplicated in many other plants. The instances where the industrial heater is completely assembled at the manufacturer's plant do not appear to be an appreciable portion of the sum total.

5. In view of these comments, the Commission has reconsidered its proposal for two types of certification and has decided to combine the provisions of both into one requirement. The rules set forth below provide for the certification of industrial heating equipment based on field strength measurements made at the point of use or on the basis of field strength measurements made on a prototype. Should the field strength measurements be made at locations other than where the industrial heating equipment is in use, the person responsible for the operation of the equipment is required to add a signed statement to the certificate attesting that the equipment has been installed in conformity with the manufacturers instructions which are contained in the certificate. It is believed that this requirement for joint responsibility between the certifying engineer and the operator will provide more latitude in the various arrangements that exist between the manufacturers and purchasers of industrial heating equipment. It is also expected that such joint responsibility will adequately insure compliance with the Commission's requirements.

6. Many comments have been received opposing the Commission's proposal that the certificate required for the operation of industrial equipment be renewed at five year intervals. Where inspections are made regularly and a high quality maintenance is provided it is alleged that recertification is not required on a periodic basis. The Commission is persuaded by this argument and is requiring that inspections be made at sufficiently frequent intervals so as to insure that each equipment is installed, maintained and operated in a manner that provides compliance with the provisions of the rules. Until such time that future experience indicates the necessity for such regulations, no attempt will be made to specify the time interval between inspections. The rules set forth below do require that a log be maintained of the inspections made. Recertification is required when the inspecting engineer or the Commission believes that such action is necessary.

7. Regarding the Commission's proposal to limit the radio frequency voltage appearing on the external power conductors connected to industrial heating equipment, the comments indicate that power line filters often contribute very little in reducing the total radiation from the equipment. Rather than apply the power line voltage limitation to all installations of industrial heating equipment the rules set forth below require the use of power line filters only to the extent necessary to reduce the radiation to the limits specified.

8. On December 19, 1956, the Commission by an order nunc pro tunc (Docket 6651) amended §§ 18.11 (a) and 18.21 (a) of the rules to include the frequencies 915, 2450, 5850 and 18,000 Mc as available for the operation of industrial, scientific and medical equipment. A Commission Order of April 25, 1956, in Docket 11550 deleted the allocation of 10,600 Mc as an ISM frequency. Moreover, the Commission has today adopted a Memorandum Opinion and Order in Docket 6651 denying a Petition filed by

the Lenkurt Electric Company, Inc. for Reconsideration or Clarification of the December 19, 1956, Order insofar as the frequency 915 Mc was concerned. In view of these actions, the proposal in the subject docket to add certain microwave frequencies to Part 18 has been rendered moot, and, since this is not an allocation proceeding, consideration of any reallocation of these frequencies in this docket would be inappropriate.

9. Attention is invited, however, to the proceeding in Docket 11866 which calls for a preliminary fact finding hearing to review all service allocations above 890 Mc, with the purpose of proposing such changes as may be consistent with microwave and other developments and future use and requirements by the various fixed and mobile services. Comments which have been filed in the instant proceeding and which pertain to including certain microwave frequencies in Part 18 will, in view of the foregoing, be considered in connection with Docket 11866.

10. A further comment suggested that the Commission revise the definition of "harmful interference" appearing in the proposal to the extent of specifying a minimum field strength that non-safety licensed stations must provide in order to be eligible for relief from interference. The definition for the term "harmful interference" is not a new definition proposed for adoption in this proceeding. Rather it is the definition now used internationally (Atlantic City Radio Regulations, 1947, Paragraph 69) and used throughout the Commission's rules which is proposed for incorporation into Part 18 to conform this part with the remainder of the Commission's rules. To define "harmful interference" such as proposed in the mentioned comment would introduce an undesirable administrative complexity in our rules. Furthermore, the Commission is not in a position, on the basis of the record in this proceeding, to make a determination that the public interest, convenience and necessity would be served by adopting the interference philosophy embodied in the proposed definition.

11. Comments were also received recommending that the frequency tolerance of certain ISM bands be increased and other ISM bands be added to those now available for the operation of industrial heating equipment. This has not been done since such frequency allocation matters are not considered to be within the scope of the Commission's proposal.

12. The Commission believes that the public interest will be served by adopting the rules set forth below governing the Industrial, Scientific and Medical Service. Authority for the adoption of the attached rules is contained in section 4 (i), 301 and 303 (f) of the Communications Act of 1934, as amended.

13. In view of the foregoing considerations: *It is ordered*, That effective April 30, 1957, Part 18 of the Commission's rules and regulations is amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interpret or apply secs. 301, 303, 48 Stat. 1081, 1082; 47 U. S. C. 301, 303)

Adopted: March 20, 1957.

Released: March 22, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

Amend Part 18 as follows:

1. Delete: Sections 18.17 and footnote 3; 18.21 through 18.24 inclusive, and footnote 4; 18.32 and footnote 5; 18.83.

2. In § 18.2 add new paragraphs (f), (g) and (h) as follows:

(f) "Industrial, scientific and medical equipment" (ISM Equipment). Devices which use Hertzian waves for industrial, scientific, medical or other purposes including the transfer of energy by radio and which are neither used nor intended to be used for radiocommunication.

(g) "Harmful interference". Any radiation or induction which endangers the functioning of a radio-navigation service or of a safety service, or obstructs, or repeatedly interrupts a radio service operating in accordance with the regulations in Part 2 of this chapter.

(h) "ISM frequency". A frequency assigned by this part for the use of ISM equipment. A specified tolerance is associated with each ISM frequency. (See § 18.6).

3. Add new § 18.6 as follows:

§ 18.6 *ISM frequencies and frequency tolerances.* The following frequencies are allocated for use by ISM equipment with the tolerance limits specified:

ISM frequency:	*Frequency tolerance*
13.560 kc	±6.78 kc
27,120 kc	±160.00 kc
40,680 kc	±20.00 kc
915 Mc [2]	±25 Mc
2450 Mc [1]	±50 Mc
5850 Mc [2]	±75 mc
18,000 Mc [2]	±150 Mc

[1] By public notice and order dated December 26, 1946, the Commission announced the availability of this frequency for industrial, scientific and medical purposes. It was expressly stated in the said public notice and order that such use of this frequency would be governed by the conditions set forth in that order and set out as Appendix A hereto rather than Part 18 of the Commission's rules.

[2] By public notice and order dated May 15, 1947, the Commission announced the availability of this frequency for industrial, scientific and medical purposes. It was expressly stated in the said public notice and order that such use of this frequency would be governed by the conditions set forth in the Commission's order of December 26, 1946 and set out as Appendix A hereto rather than Part 18 of the Commission's rules.

4. Add new § 18.8 as follows:

§ 18.8 *Interference from ISM equipment.* (a) Subject to the exceptions in paragraphs (b) and (c) of this section and irrespective of whether the equipment otherwise complies with the rules in this part, the operator of ISM equipment that causes harmful interference to any authorized radio service shall promptly take steps as may be necessary to remedy the interference.

(b) The provisions of paragraph (a) of this section shall not apply in the case of interference to an authorized radio station operating on an ISM frequency (including tolerance).

(c) The provisions of paragraph (a) of this section shall not apply in the case of interference to a receiver arising from direct intermediate frequency pickup by the receiver of the fundamental frequency emissions of ISM equipment operating on an ISM frequency (including tolerance) and otherwise complying with the requirements of this part.

5. Add new centerhead "Industrial Heating Equipment" including §§ 18.101 through 18.108 inclusive:

INDUSTRIAL HEATING EQUIPMENT

Sec.
18.101 Operation without a license.
18.102 Technical limitations.
18.103 Certification of industrial heating equipment.
18.104 Location of certificate.
18.105 Inspection of industrial heating equipment.
18.106 Renewal of certificate.
18.107 Measurement of field intensity.
18.108 Location of equipment.

§ 18.101 *Operation without a license.* Industrial heating equipment may be operated without a license: *Provided*, The design and operation of the equipment complies with the technical limitations in this part for such equipment: *And provided further*, That the equipment has been certificated pursuant to the requirements of this part.

§ 18.102 *Technical limitations.* (a) Industrial heating equipment shall be designed and constructed in accordance with good engineering practice with sufficient shielding and filtering to meet the requirements of this part.

(b) Industrial heating equipment may be operated on any frequency except frequencies in the bands 490–510 kc, 2170–2194 kc, and 8354–8374 kc. Equipment operating on an ISM frequency may be operated with unlimited radiation on that frequency. Equipment operated on other frequencies must suppress radiation on the fundamental carrier frequency as well as other frequencies as required by this part.

(c) Industrial heating equipment designed for operation on an ISM frequency shall be adjusted to operate as close to that ISM frequency as practicable.

(d) Radiation of radio frequency energy from any industrial heating equipment on any frequency below 5775 Mc, except ISM frequencies, shall be suppressed so that the radiated field strength does not exceed 10 microvolts per meter at a distance of one mile or more from the equipment.

(e) Radiation of radio frequency energy from any industrial heating equipment on any frequency above 5775 Mc, except ISM frequencies, shall be reduced to the greatest extent practicable.

NOTE: The Commission will establish definite radiation limits for these frequencies as soon as information regarding equipment

operating on these frequencies becomes available.

(f) Filtering between the industrial heating equipment and power lines must be provided to the extent necessary to prevent the radiation of energy from power lines on frequencies other than ISM frequencies with a field strength in excess of 10 microvolts per meter at a distance of one mile or more from the industrial heating equipment and at a distance of 50 feet from the power line.

§ 18.103 *Certification of industrial heating equipment.* (a) The certificate required by this part shall be executed by an engineer skilled in making and interpreting field strength measurements. The Commission may require such engineer to provide proof of his qualifications.

(b) The certificate may be issued on the basis of field strength measurements made at the point of use or on the basis of field strength measurements made on a prototype.

(c) The certificate for equipment measured at the location where the equipment is in use shall contain the following information:

(1) Type and serial number, or other positive identification, of the industrial heating equipment being certificated.

(2) Conditions under which the certificated equipment shall be operated and maintained.

(3) Brief description of the engineering tests and a summary of the measured data upon which the certificate is based.

(4) Date the measurements were made.

(5) A statement certifying that the subject equipment does meet and may reasonably be expected to continue to meet the requirements of this part.

(6) Date of certification.

(7) Signature of certifying engineer.

(8) Name and address of employer of certifying engineer, if any.

(d) The certificate for equipment measured at a location other than where the equipment is in use shall contain the information required by subparagraphs (1) through (8) of paragraph (c) of this section plus the following:

(1) Detailed installation instructions which will insure that the equipment complies with the radiation limitations in this part.

(2) A statement, signed by the person responsible for the operation of the equipment, attesting that the equipment has been installed in conformity with the installation instructions in this certificate.

§ 18.104 *Location of certificate.* In general the certificate shall be attached to the equipment. Alternatively the certificate may be placed at any location where it will be conveniently available for inspection by authorized representatives of the Commission, provided there is attached to the equipment a notice stating where the certificate is located.

§ 18.105 *Inspection of industrial heating equipment.* (a) Industrial heating equipment shall be periodically inspected in order to reaffirm the validity of the certificate required by this part.

(b) Inspection shall be made at sufficiently frequent intervals to insure that each industrial heating equipment is installed, maintained, and operated in a manner that provides compliance with the provisions of this part.

(c) A log shall be maintained of the inspections made. The inspecting engineer shall enter a brief note of his findings and shall date and sign each entry.

(d) The log shall be maintained at the same location as the certificate.

(e) The inspecting engineer shall require the equipment to be recertificated pursuant to the requirements of this part, if he determines, as a result of his inspection, that such action is necessary in order to assure compliance with this part.

§ 18.106 *Renewal of certificate.* (a) The certificate required to be exhibited by this part shall be renewed:

(1) When changes have been made that might increase the radiated interference beyond the limits specified in this part.

(2) When the inspecting engineer has determined that such action is necessary to assure compliance with the requirements of this part.

(3) When required by the Commission because it has reason to believe that operation of the equipment concerned may be inconsistent with the requirements of this part.

(b) The renewal of the certificate shall be based on measurements made at the point of installation.

§ 18.107 *Measurement of field strength.* Measurements to determine the field strength of radio frequency energy generated by industrial heating equipment shall be made in accordance with standard engineering procedures and shall include the following:

(a) A loop antenna shall be used for measurements on frequencies below 18 Mc, and a doublet antenna shall be used for measurements on frequencies above 30 Mc. Either a loop or doublet antenna shall be used on frequencies between 18 Mc and 30 Mc. Appropriate techniques shall be resorted to for measurements in the microwave region of the spectrum.

(b) Prior to the determination of the maximum field strength at one mile, a sufficient number of measurements shall be made in the vicinity of the industrial heating equipment to enable plotting of the polar radiation pattern and to assure the correct determination of the major lobes. Where conditions permit, these measurements shall be made at intervals of not more than 20 degrees in azimuth directions and at distances not exceeding 1,000 feet from the location of the equipment. The measurements so obtained shall be reduced to equivalent field strength at 1,000 feet.

(c) The field strength maesurements for the maximum field strength at one mile shall be made along the radial corresponding to the lobe of maximum radiation as determined from the polar radiation pattern. Sufficient measurements shall be made along radials extending through all lobes which are within 15 db of the apparent maximum lobe, as determined in paragraph (b) of this section to assure that the assumed lobe of greatest field strength is in fact the maximum lobe. If two or more lobes of radiation of approximately the same strength are present, measurements to determine field strength shall be made along the several radials for such lobes. Where possible, field strength measurements shall be made along each radial at intervals of not greater than 500 feet and an average curve drawn for measured field strength in microvolts per meter versus distance in feet. Where necessary, the average curve shall be extended to show the extrapolated field strength at one mile. In these cases where it is impractical to conduct measurements along the radial of maximum radiation a sufficient number of field strength measurements shall be made to clearly indicate the magnitude of the radiation field in the sector containing the lobe of maximum radiation.

(d) Where there is evidence of radiation from power lines, field strength measurements shall be made at not less than three points along the power line located approximately 1 mile from the location of the industrial heating equipment causing such radiation and to include a length of power line not less than 500 feet. One point of measurement shall lie within the 1-mile distance and the others beyond. At each of these points at least three measurements of field strength shall be made along a line normal to the power line and out to a distance from the power line not exceeding 50 feet measured horizontally along the ground from a point directly below the outermost conductor.

(e) The field strengths specified herein refer to the maximum field strengths, regardless of polarization, measured at a height of 12 feet above the immediate terrain or at such lower height at which the field strengths may exceed that at 12 feet. Measurements made at frequencies below 18 Mc may be made at any convenient height.

§ 18.108 *Location of equipment.* For the purpose of measurements required in order to execute a certification of compliance, the location of the industrial heating equipment may be considered to be the actual physical location of the equipment, or, where several such units are grouped within a circle of 500 feet radius or less, the several units may, at the election of the certifying engineer, be considered as a single unit, located at the center of the smallest enclosing circle. If the certification includes several units treated as one equipment, the distance of one mile at which the maximum permissible radiation is determined shall be reduced by the radius of the smallest circle that encloses the several units.

[F. R. Doc. 57-2347; Filed, Mar. 26, 1957; 8:52 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[Ex Parte Nos. MC–5, 159]

Subchapter A—General Rules and Regulations

PART 7—LIST OF FORMS, PART II, INTERSTATE COMMERCE ACT

Subchapter B—Carriers by Motor Vehicle

PART 174—SURETY BONDS AND POLICIES OF INSURANCE

Subchapter D—Freight Forwarders

PART 405—SURETY BONDS AND POLICIES OF INSURANCE

MISCELLANEOUS AMENDMENTS

In the matter of security for protection of the public as provided in Part II of the Interstate Commerce Act, and of rules and regulations governing filing and approval of surety bonds, policies of insurance, qualifications as a self-insurer, or other securities and agreements by motor carriers and brokers subject to Part II of the act; Ex Parte MC–5.

In the matter of security for protection of the public as provided in Part IV of the Interstate Commerce Act, and of rules and regulations governing filing and approval of surety bonds, policies of insurance, qualifications as a self-insurer, or other securities and agreements by freight forwarders subject to part IV of the act; Ex Parte No. 159.

At a session of the Interstate Commerce Commission, Division 1, held at its office in Washington, D. C., on the 28th day of February A. D. 1957.

The matter of revision of certain sections contained in our rules and regulations governing the filing and approval of surety bonds, policies of insurance, qualifications as a self-insurer, or other securities and agreements prescribed pursuant to sections 215 and 403 (c) and (d) of the Interstate Commerce Act (49 CFR Parts 174 and 405) and of certain insurance and surety bond forms required to be filed by or in behalf of motor carriers, brokers and freight forwarders pursuant thereto being under consideration, and

It appearing that a notice, dated July 17, 1956, to the effect that certain revisions of the said rules and regulations were to be given consideration, was published in the FEDERAL REGISTER on August 22, 1956 (21 F. R. 6303) pursuant to the provisions of section 4 of the Administrative Procedure Act; and that, no oral hearing concerning the matter under consideration being deemed necessary, after consideration of all written views and arguments received on or before the date specified in such notice, as extended upon request, revision of said rules and regulations is deemed justified and necessary; and that such revision will necessitate the revision of certain of the forms prescribed for filing evidence of insurance or other security with the Commission in conformity with such rules and regulations;

It is ordered, That §§ 174.7 (a) and 405.8 (a) be amended by the addition of the following sentence at the end of each of those two paragraphs: "Surety bonds and certificates of insurance shall specify that coverage thereunder will remain in effect continuously until terminated as herein provided, except that in special or unusual circumstances special permission may be obtained for filing certificates of insurance or surety bonds covering periods of less than twelve months duration."

It is further ordered, That §§ 174.7 (d), 174.8 (b), 405.6 (b) and 405.8 (d) be revised so as to read, and that 174.7 (e) and 405.8 (f) be added, as follows:

§ 174.7 *Forms and procedure.* * * *

(d) *Cancellation notice.* Except as provided in paragraph (e) of this section, surety bonds, certificates of insurance and other securities and agreements shall not be cancelled or withdrawn until after thirty (30) days' notice in writing by the insurance company, surety or sureties, motor carrier, broker or other party thereto, as the case may be, has first been given to the Commission at its office in Washington, D. C., which period of thirty (30) days shall commence to run from the date such notice is actually received at the office of the Commission.

(e) *Termination by replacement.* Certificates of insurance or surety bonds which have been accepted by the Commission under the rules in this part may be replaced by other certificates of insurance, surety bonds or other security, and the liability of the retiring insurer or surety under such certificates of insurance or surety bonds shall be considered as having terminated as of the effective date of the replacement certificate of insurance, surety bond or other security: *Provided,* The said replacement certificate, bond or other security meets all of the following conditions:

(1) It must be acceptable to the Commission under the rules and regulations in this part;

(2) It must be accompanied by a letter of authorization, in duplicate, signed by the motor carrier involved or an authorized employee of such motor carrier, authorizing such replacement and verifying the effective date thereof; and

(3) Its effective date must coincide with the effective date specified in the letter of authorization and the said date may not be more than thirty days prior to the date of receipt by the Commission of the letter of authorization and replacement certificate.

§ 174.8 *Insurance and surety companies; authorized.* * * *

(b) *Financial resources.* Each insurance and surety company must possess and maintain surplus funds (policyholders' surplus) of not less than $500,000, which minimum will be determined on the basis of the values of assets and liabilities as shown in its financial statements filed with and approved by the insurance department or other insurance regulatory authority of the state of domicile (home state) of such company, except in instances where, in the judgment of the Commission, additional evidence with respect to such values is considered necessary: *Provided, however,* That this paragraph shall be effective December 31, 1960, as respects insurance and surety companies which are, on June 30, 1957, authorized to file certificates of insurance and surety bonds with the Commission.

§ 405.6 *Insurance and surety companies.* * * *

(b) *Financial resources.* Each insurance and surety company must possess and maintain surplus funds (policyholders' surplus) of not less than $500,000, which minimum will be determined on the basis of the values of assets and liabilities as shown in its financial statements filed with and approved by the insurance department or other insurance regulatory authority of the state of domicile (home state) of such company, except in instances where, in the judgment of the Commission, additional evidence with respect to such values is considered necessary: *Provided, however,* That this paragraph shall be effective December 31, 1960, as respects insurance and surety companies which are, on June 30, 1957, authorized to file certificates of insurance and surety bonds with the Commission.

§ 405.8 *Forms and procedure.* * * *

(d) *Cancellation.* Except as provided in paragraph (f) of this section, certificates of insurance, surety bonds and other securities and agreements shall not be cancelled or withdrawn until after 30 days' notice in writing has first been given by the insurance company or companies, surety or sureties, freight forwarder or other party thereto, as the case may be, to the Commission at its office in Washington, D. C., which period of 30 days shall commence to run from the date such notice is actually received at the office of the Commission.

* * * * *

(f) *Termination by replacement.* Certificates of insurance or surety bonds which have been accepted by the Commission under the rules in this part may be replaced by other certificates of insurance, surety bonds or other security, and the liability of the retiring insurer or surety under such certificates of insurance or surety bonds shall be considered as having terminated as of the effective date of the replacement certificate of insurance, surety bond or other security: *Provided,* The said replacement certificate, bond or other security meets all of the following conditions:

(1) It must be acceptable to the Commission under the rules and regulations in this part;

(2) It must be accompanied by a letter of authorization, in duplicate, signed by the freight forwarder involved or an authorized employee of such freight forwarder, authorizing such replacement and verifying the effective date thereof; and

(3) Its effective date must coincide with the effective date specified in the letter of authorization and the said date may not be more than thirty days prior to the date of receipt by the Commission of the letter of authorization and replacement certificate, bond or other security.

It is further ordered, That the orders of August 3, 1936, December 10, 1954, and August 22, 1955, insofar as they apply to the use of Forms BMC 34, BMC 35, BMC

35–A (Revised), BMC 36, BMC 36–A (Revised), BMC 82 (Revised), BMC 83 (Revised) and BMC 91 (§§ 7.34, 7.35, 7.35a (Revised), 7.36, 7.36a (Revised), 7.82 (Revised), 7.83 (Revised) and 7.91) and the orders of October 11, 1944, June 5, 1951, August 22, 1955 and November 14, 1955, insofar as they apply to the use of Forms FF 34, FF 35, FF 35–A (Revised), FF 36, FF 36–A (Revised), FF 43. FF 51 and FF 52 (§ 405.8 Note) be vacated, thus cancelling such forms as of the effective date hereinafter provided;

It is further ordered, That Part 7 be amended as follows:

§ 7.34 *B. M. C. 34 (Rev. '57).* Motor carrier cargo liability certificate of insurance.

§ 7.35 *B. M. C. 35 (Rev. '57).* Notice of cancellation motor carrier policies of insurance.

§ 7.35a *B. M. C. 35–A (Rev. '57).* Notice to rescind cancellation or reinstate motor carrier policy of insurance.

§ 7.36 *B. M. C. 36 (Rev. '57).* Notice of cancellation motor carrier and broker's surety bonds.

§ 7.36a *B. M. C. 36–A (Rev. '57).* Notice to rescind cancellation or reinstate motor carrier surety bond.

§ 7.82 *B. M. C. 82 (Rev. '57).* Motor carrier bodily injury liability and property damage liability surety bond.

§ 7.83 *B. M. C. 83 (Rev. '57).* Motor common carrier cargo liability surety bond.

§ 7.91 *B. M. C. 91 (Rev. '57).* Motor carrier automobile bodily injury liability and property damage liability certificate of insurance.

It is further ordered, That Part 405 be amended by deleting from the list of forms in the editorial note to § 405.8 *Forms and procedure* the following: FF 34, FF 35, FF 35–A (Revised), FF 36, FF 36–A (Revised), FF 43, FF 51 and FF 52; and by substituting in lieu thereof the following:

FF 34 (Rev. '57). Freight Forwarder Cargo Liability Certificate of Insurance.

FF 35 (Rev. '57). Notice of Cancellation of Freight Forwarder Policy of Insurance.

FF 35–A (Rev. '57). Notice to Rescind Cancellation or Reinstate Freight Forwarder Policy of Insurance.

FF 36 (Rev. '57). Notice of Cancellation of Freight Forwarder Surety Bond.

FF 36–A (Rev. '57). Notice to Rescind Cancellation or Reinstate Freight Forwarder Surety Bond.

FF 43 (Rev. '57). Freight Forwarder Cargo Liability Surety Bond.

FF 51 (Rev. '57). Freight Forwarder Automobile Bodily Injury Liability and Property Damage Liability Certificate of Insurance.

FF 52 (Rev. '57). Freight Forwarder Bodily Injury Liability and Property Damage Liability Surety Bond.

It is further ordered, That one copy of each of the revised forms [1] with respect to Parts 7 and 405 be made a part hereof, and such revised forms are hereby approved, adopted and prescribed for appropriate use by or on behalf of motor carriers, brokers and freight forwarders:

[1] Filed as part of the original documents.

Provided, however, That the use of the revised forms prescribed herein shall not be required with respect to any certificate of insurance or surety bond which is accepted by the Commission and placed on file prior to June 30, 1957.

And it is further ordered, That, except as otherwise specifically provided herein, this order shall be effective June 30, 1957, and shall continue in effect until the further order of the Commission.

Notice of this order shall be given to the general public by depositing a copy thereof in the office of the Secretary of the Commission, Washington, D. C., and by filing a copy thereof with the Director, Division of the Federal Register.

(49 Stat. 546 as amended; 49 U. S. C. 304. Interpret or apply 49 Stat. 554 as amended, 557, 56 Stat. 285; 49 U. S. C. 311, 315, 1003)

By the Commission, Division 1.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 57–2329; Filed, Mar. 26, 1957; 8:49 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 52]

UNITED STATES STANDARDS FOR GRADES OF FROZEN CONCENTRATE FOR GRAPE BEVERAGE

ADDITIONAL TIME FOR FILING DATA, VIEWS, OR ARGUMENTS

Proposed United States Standards for Grades of Frozen Concentrate for Grape Beverage were set forth in the notice which was published in the FEDERAL REGISTER of January 11, 1957 (22 F. R. 241).

In consideration of comments and suggestions received indicating the need for further study of the proposal by industry notice is hereby given of an additional period of time until June 11, 1957, within which written data, views, or arguments may be submitted by interested parties for consideration in connection with the aforesaid proposed United States Standards for Grades of Frozen Concentrate for Grape Beverage.

Dated: March 22, 1957.

FRANK E. BLOOD, *Acting Deputy Administrator, Marketing Services.*

[F. R. Doc. 57–2355; Filed, Mar. 26, 1957; 8:54 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR Part 3]

[Docket No. 11958; FCC 57–266]

TELEVISION BROADCAST STATIONS

TABLE OF ASSIGNMENTS; KOKOMO-MARION, INDIANA

In the matter of amendment of § 3.606 *Table of assignments,* Television Broadcast Stations (Kokomo-Marion, Indiana).

1. Notice is hereby given of proposed rule making in the above-entitled matter.

2. The Commission has before it for consideration a petition filed on January 24, 1957, by Indiana Broadcasting Corporation, permittee of television Station WINT in Fort Wayne, Indiana, requesting an amendment of § 3.606 *Table of assignments,* Television Broadcast Stations, so as to shift the assignments in Kokomo and Marion, Indiana, as follows:

City	Channel No.	
	Delete	Add
Kokomo, Ind.	31	29+
Marion, Ind.	29+	31

3. In support of its request petitioner urges that the proposed amendment would conform to the rules; that it would not adversely affect any existing station; and that it would permit WINT to utilize a site within the City of Fort Wayne.

4. The Commission is of the view that rule making proceedings should be instituted in order that interested parties may submit their views and relevant data.

5. Authority for the adoption of the proposed amendment is contained in sections 4 (i), 301, 303 (c), (d), (f) and (r) and 307 (b) of the Communications Act of 1934, as amended.

6. Any interested party who is of the opinion that the proposed amendment should not be adopted, or should not be adopted in the form set forth herein, may file with the Commission on or before April 10, 1957, a written statement or brief setting forth his comments. Comments in support of the proposed amendment may also be filed on or before the same date. Comments or briefs in reply to the original comments may be filed within 10 days from the last day for filing said original comments. No additional comments may be filed unless (1) specifically requested by the Commission or (2) good cause for the filing of such additional comments is established.

7. In accordance with the provisions of § 1.764 of the Commission's rules and regulations, an original and 14 copies of all statements, briefs or comments shall be furnished the Commission.

Adopted: March 20, 1957.

Released: March 21, 1957.

FEDERAL COMMUNICATIONS COMMISSION,

[SEAL] MARY JANE MORRIS, *Secretary.*

[F. R. Doc. 57–2348; Filed, March 26, 1957; 8:52 a. m.]

POST OFFICE DEPARTMENT

[39 CFR Part 131]

POSTAL CHARGES

CUSTOMS CLEARANCE AND DELIVERY FEES

Postal Regulations prescribe a 15-cent fee to be collected from addressees for the service performed by the Post Office in effecting customs clearance and delivery of each parcel post package and small packet received from foreign countries. Also prescribed is a 10-cent customs clearance fee on letters and letter packages submitted for customs inspection upon receipt from foreign countries. It is proposed to eliminate such charges on all items of mail matter found upon examination to be nondutiable.

In lieu of the foregoing fees, it is proposed that a 30-cent charge on parcel post and small packets, and a 10-cent charge on letters, letter packages, and other Postal Union articles, received from other countries be collected only when they are actually subject to duty.

The following is an amendment proposed to be made by the Department to the regulations in Part 131 of Title 39, Code of Federal Regulations, respecting customs clearance and delivery fees.

The regulations relate to a proprietary and foreign affairs function of the Government, and therefore are exempted from the rule making requirements of section 1003 of Title 5, United States Code. However, it is the desire of the Postmaster General to voluntarily observe the rule making requirements of the Administrative Procedure Act in matters of this kind, and to afford patrons of the Postal Service an opportunity to present written views concerning the proposed amendments. Such written views may be submitted to E. George Siedle, Assistant Postmaster General, Bureau of Transportation, Post Office Department, Washington 25, D. C., at any time prior to May 1, 1957.

Section 131.2 is amended to read as follows:

§ 131.2 *Customs clearance and delivery fees.* On every dutiable parcel post package and every dutiable small packet delivered to you, you are charged 30 cents. On every dutiable Postal Union article other than a small packet, you are charged 10 cents. These charges are for the service performed by the post office in effecting customs clearance and delivery of the articles or parcels, and are collected together with the customs duty.

(R. S. 161, 396, as amended, 398, as amended; 5 U. S. C. 22, 369, 372)

[SEAL] ABE MCGREGOR GOFF,
General Counsel.

[F. R. Doc. 57-2321; Filed, Mar. 26, 1957; 8:47 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[17 CFR Part 250]

[File No. S7-157]

FINANCIAL CONNECTIONS OF OFFICERS AND DIRECTORS OF REGISTERED HOLDING COMPANIES AND SUBSIDIARIES THEREOF

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the Securities and Exchange Commission has under consideration a formal request to amend § 250.70 (Rule U-70), adopted under section 17 (c) of the Public Utility Holding Company Act of 1935, governing the connections with financial institutions of officers and directors of registered holding companies and subsidiary companies.

Section 17 (c) of the act prohibits any registered holding company or any subsidiary company thereof from having as an officer or director any "executive officer, partner, appointee or representative of any bank, trust company, investment banker, or banking association or firm" except as permitted by rule and regulation of the Commission "as not adversely affecting the public interest or the interest of investors and consumers." Rule U-70 defines those persons or situations to which the Commission has granted exemption from section 17 (c).

The requested amendment would provide an exemption to registered holding companies which are in the process of transforming to investment companies, by adding a subparagraph (7) to paragraph (a) of the present section so that the amended section would read as follows:

§ 250.70 *Exemptions from section 17 (c) of the act*—(a) *Exempted persons.* Subject to paragraph (b) of this section, a registered holding company or subsidiary may have as officers or directors the persons specified below:

* * * * *

(7) *Registered holding companies during conversion to investment company.* A person who is a director of a "commercial banking institution" as hereafter defined in paragraph (c) (6) of this section: *Provided*, That such person may act as a director, but not as an officer, of a registered holding company which has no public-utility subsidiaries operating within the United States, only in the period during which such company is in the process of converting into an investment company in compliance with an order of the Commission under section 11 of the act which has become final.

All interested persons are hereby invited to submit views and comments on the proposed revision of the rule. Such views and comments and any request for oral argument in respect thereof should be submitted to the Securities and Exchange Commission, Washington 25, D. C. on or before April 18, 1957. All correspondence in connection with this proposal should refer to the above file number.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

MARCH 18, 1957.

[F. R. Doc. 57-2324; Filed, Mar. 26, 1957; 8:48 a. m.]

NOTICES

DEPARTMENT OF THE TREASURY

Office of Treasurer of the United States

[Revision 1]

ORDER OF SUCCESSION OF PERSONS TO ACT AS TREASURER OF THE UNITED STATES

Under the authority conferred upon me by Treasury Department Order No. 129, Revision No. 2, dated April 22, 1955, it is hereby ordered that the following officers in the Office of the Treasurer of the United States in the order of succession enumerated shall act as Treasurer during the absence or disability of the Treasurer.

Deputy and Acting Treasurer.
Assistant Deputy Treasurer.
Assistant to the Deputy and Acting Treasurer.
Administrative Officer.
Chief, General Accounts Division.

In the event of an enemy attack on the continental United States, and in the absence of the Treasurer of the United States, the senior officer, in descending order in the foregoing line of succession, present at the site of the operations of the Treasurer of the United States shall act as Treasurer. If none of such officers is present at the site of the Treasurer's operations it is hereby ordered that the officer acting as District Director, Internal Revenue Service, at the city at which the Treasurer's operations are reestablished shall act as Treasurer of the United States.

In the event of an enemy attack on the continental United States and the occurrence of a vacancy in the Office of the Treasurer, the Treasurer's functions shall be deemed to have been transferred, pursuant to the above described Treasury Department Order, to the Deputy and Acting Treasurer, and in the event of a vacancy in the Office of Deputy and Acting Treasurer, to the senior officer, in descending order in the following line of succession, present at the site of the operations of the Treasurer of the United States.

Assistant Deputy Treasurer.
Assistant to the Deputy and Acting Treasurer.
Administrative Officer.
Chief, General Accounts Division.

If none of such officers is present at the site of the Treasurer's operations, the Treasurer's functions shall be deemed to have been transferred, pursuant to the aforesaid order, to the officer acting as District Director, Internal Revenue Service at the city at which the Treasurer's operations are reestablished.

This order supersedes the order of succession dated May 23, 1955.

Dated: March 21, 1957.

[SEAL] IVY BAKER PRIEST,
Treasurer of the United States.

[F. R. Doc. 57-2342; Filed, Mar. 26, 1957; 8:51 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Indian Affairs

[Bureau Order 551, Amdt. 33]

OSAGE LAND EXCHANGES, PARTITIONS AND CHANGE DESIGNATION OF HOMESTEAD

REDELAGATION OF AUTHORITY WITH RESPECT TO INDIAN LANDS AND MINERALS

MARCH 21, 1957.

Order 551, as amended, is further amended by addition of a new section under the heading "Functions Relating to Indian Lands and Minerals" to read as follows:

SEC. 29. *Osage land exchanges, partitions and change designation of homestead.* The approval of orders to change designation of homestead and approval of instruments vesting title, pursuant to the provisions of 25 CFR 242, Subpart B.

GLENN L. EMMONS,
Commissioner.

[F. R. Doc. 57-2313; Filed, Mar. 26, 1957; 8:45 a. m.]

Bureau of Land Management

[Serial No. Idaho 06626, 06797, 06978, 06979, 07059, 07134, 07152, 07153, 07204, 07235, 07783]

IDAHO

ORDER PROVIDING FOR OPENING OF PUBLIC LANDS

MARCH 19, 1957.

In exchanges of lands made under the provisions of Section 8 of the Act of June 28, 1934 (48 Stat. 1269); as amended June 26, 1936 (49 Stat. 1976; 43 U. S. C. 315 g) the following-described lands have been reconveyed to the United States under the exchange number indicated:

Idaho exchange No.	Description of total acreage	Location
	BOISE MERIDIAN, IDAHO	
B1-54199	T. 3 S., R. 19 E., Sec. 19, NW¼SE¼, SE¼SE¼; Sec. 30, SE¼SE¼.	Lincoln County—About 6-7 miles northwest of Richfield, Idaho.
	T. 6 S., R. 21 E., Sec. 21, N½SW¼, SE¼SW¼, SE¼.	Lincoln County—West of Kimama, Idaho.
	T. 7 S., R. 21 E., Sec. 6, N½SE¼, SE¼SE¼; Sec. 7, NE¼NE¼; Sec. 21, N½.	Lincoln County—West of Kimama, Idaho.
	T. 7 S., R. 22 E., Sec. 24, SW¼NW¼, NW¼SW¼	Lincoln County—West of Kimama, Idaho.
B1-055579	T. 13 S., R. 21 E., Sec. 34, E½SE¼; Sec. 35, S½NE¼, S½SW¼, N½SE¼.	Cassia County—about 4 miles west of Oakley, Idaho.
	T. 14 S., R. 21 E., Sec. 1, NW¼SW¼; Sec. 2, SW¼SE¼, E½SE¼.	Cassia County—about 4 miles west of Oakley, Idaho.
I-02992	T. 13 S., R. 16 E., Sec. 11, W½NW¼.	Twin Falls County—About 3 miles southeast of Hollister, Idaho.
B1-055015	T. 7 N., R. 32 E., Sec. 13, Lts 3, 4 W½SE¼.	Jefferson County—about 10 miles northwest of Terreton, Idaho.
	T. 7 N., R. 33 E., Sec. 19, E½W½.	Jefferson County—About 10 miles northwest of Terreton, Idaho.
	T. 4 N., R. 34 E. Sec. 7, Lots 3, 4 E½SW¼, SE¼.	Jefferson County—About 10 miles south of Terreton, Idaho.
B1-054264	T. 12 S., R. 15 E., Sec. 24, SE¼SE¼.	Twin Falls County—About 3 miles west of Hollister, Idaho.
B1-054699	T. 4 S., R. 31 E., Sec. 4, S½SW¼.	Bingham County—About 8 miles west of Springfield, Idaho.
B1-054746	T. 2 S., R. 32 E., Sec. 14, SE¼SW¼.	Bingham County—About 17 miles west of Blackfoot, Idaho.
B1-054437	T. 4 S., R. 31 E., Sec. 9, N½NW¼; Sec. 30, S½NW¼.	Bingham County—About 8-10 miles south and west of Springfield, Idaho.
B1-054743	T. 4 S., R. 31 E., Sec. 30, W½SE¼.	Bingham County—About 7 miles northwest of Aberdeen, Idaho.
I-0909	T. 9 N., R. 33 E., Sec. 13, NE¼SW¼; Sec. 24, E½, NW¼.	Clark County—About 6-12 miles north and east of Monteview, Idaho.
	T. 9 N., R. 34 E., Sec. 4, Lot 4; Sec. 5, Lots 1, 2, 3, 4.	Clark County—About 6-12 miles north and east of Monteview, Idaho.
	T. 10 N., R. 34 E., Sec. 12, E½SE¼; Sec. 31, S½NE¼, N½SE¼; Sec. 32, SE¼, E½SW¼; Sec. 33, E½SE¼.	Clark County—About 6-12 miles north and east of Monteview, Idaho.
	T. 10 N, R. 35 E., Sec. 7, Lots 3, 4.	Clark County—About 6-12 miles north and east of Monteview, Idaho.
I-01433, B1-054488	T. 15 S., R. 28 E., Sec. 7, Lots 3, 4, E½W½, W½SE¼; Sec. 18, Lots 3, 4 E½SW¼, N½SE¼ SE¼SE¼.	Cassia County—About 8-10 miles north of Strevell, Idaho.

In the above, the areas described total 4,844.87 acres of public land. The above lands are generally accessible by state and county roads. They are situated at elevations ranging generally from 4,000 to 6,000 feet with soils varying from lava ash and silt loam to sandy and gravelly deposits. In some areas rock outcroppings of float rock occur. Vegetation is generally perennial grassland or sagebrush grassland type with some annual weeds. Rainfall in the area is low, varying from nine to twelve inches annually.

No application for these lands will be allowed under the homestead, desert land, small tract, or any other nonmineral public land law, unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any valid existing rights and the requirements of applicable laws, the lands described herein are hereby opened to filing of applications, selections and locations, in accordance with the following:

a. Applications and selections under the nonmineral public land laws and applications and offers under the mineral leasing laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications, selections, and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims, subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the application and claims mentioned in this paragraph.

(2) All valid applications under the homestead, desert land and small tract laws by qualified veterans of World War II and, or, the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279 through 284, as amended), presented prior to 10:00 a. m. on April 24, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on July 24, 1957, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public land laws other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral leasing laws, presented prior to 10:00 a. m. on July 24, 1957, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands will be opened to location under the United States mining laws, beginning 10:00 a. m. on July 24, 1957.

Persons claiming veteran's preference rights under paragraph a (2) above must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing

applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning these lands shall be addressed to the Manager, Land Office, Bureau of Land Management, P. O. Box 2237, Boise, Idaho.

J. R. PENNY,
State Supervisor.

[F. R. Doc. 57-2315; Filed, Mar. 26, 1957; 8:46 a. m.]

Office of the Secretary

[Order 2508, Amdt. 19]

BUREAU OF INDIAN AFFAIRS

DELEGATIONS OF AUTHORITY WITH RESPECT TO LANDS AND MINERALS

MARCH 20, 1957.

Order No. 2508, as amended (14 F. R. 258; 16 F. R. 473, 11620, 11974; 17 F. R. 1570, 6418; 19 F. R. 34, 1123, 4585; 20 F. R. 167, 552, 3834, 5106, 7017; 21 F. R. 7655) is further amended by addition of a new paragraph under section 13 *Lands and minerals* to read as follows:

(y) The approval of orders to change designation of homestead and approval of instruments vesting title, pursuant to the provisions of 25 CFR 242, Subpart B.

FRED A. SEATON,
Secretary of the Interior.

[F. R. Doc. 57-2314; Filed, Mar. 26, 1957; 8:45 a. m.]

DEPARTMENT OF AGRICULTURE

Office of the Secretary

MISSISSIPPI AND SOUTH CAROLINA

DISASTER ASSISTANCE; DESIGNATION OF AREAS FOR SPECIAL EMERGENCY LOANS

For the purpose of making emergency loans pursuant to Public Law 727, 83d Congress, as amended, it is determined that in the State of Misissippi and in the counties of Berkeley and Clarendon in the State of South Carolina there is a need for agricultural credit which cannot be met for a temporary period from commercial banks, cooperative lending agencies, the Farmers Home Administration under its regular programs, or under Public Law 38, 81st Congress (12 U. S. C. 1148a-2), as amended, or other responsible sources.

Pursuant to the authority set forth above, such loans may be made to new applicants in said State and counties through June 30, 1957. Thereafter, such loans may be made in said State and counties only to applicants who previously received such assistance and who can qualify under established policies and procedures.

Done at Washington, D. C., this 22d day of March 1957.

[SEAL] TRUE D. MORSE,
Acting Secretary.

[F. R. Doc. 57-2327; Filed, Mar. 26, 1957; 8:48 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 5222]

AEROVIAS NACIONALES DE COLOMBIA, S. A.

NOTICE OF HEARING

In the matter of the application of Aerovias Nacionales de Colombia, S. A. for renewal of its foreign air carrier permit.

Notice is hereby given, pursuant to the Civil Aeronautics Act of 1938, as amended, that public hearing in the above-entitled matter is assigned to be held on April 2, 1957, at 10:00 a. m., e. s. t., in Room E-210, Temporary Building No. 5, 16th Street and Constitution Avenue NW., Washington, D. C., before Examiner Joseph L. Fitzmaurice.

Dated at Washington, D. C., March 22, 1957.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 57-2335; Filed, Mar. 26, 1957; 8:50 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

MAX AND JOSEF BECKER

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Max Becker, Hochwang, Germany, Josef Becker, Munich-Pasing II, Germany, Claim No. 61026, Vesting Order No. 2492; $3,218.01 in the Treasury of the United States, one-half to each claimant.

Executed at Washington, D. C., on March 20, 1957.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General, Director, Office of Alien Property.

[F. R. Doc. 57-2336; Filed, Mar. 26, 1957; 8:50 a. m.]

MAGDALENA CATHARINA JOZINA KRUISBRINK-RIETVELD DE HONDT

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Magdalena Catharina Jozina Kruisbrink-Rietveld de Hondt, 3 Burgemeester's Jacoblaan, Bussum, The Netherlands, Claim No. 60659, Vesting Order No. 17915; $125 in the Treasury of the United States; and 10 shares of ten cents par value common stock of Keta Gas and Oil Corporation and 7 shares of $5 par value common stock of Swan Finch Oil Corporation, presently in the custody of the Federal Reserve Bank, New York, New York.

Executed at Washington, D. C., on March 20, 1957.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General, Director, Office of Alien Property.

[F. R. Doc. 57-2337; Filed, Mar. 26, 1957; 8:51 a. m.]

DEPARTMENT OF COMMERCE

Office of the Secretary

[Dept. Order 86, Amended, Amdt. 1]

CIVIL AERONAUTICS ADMINISTRATION

ORGANIZATION AND FUNCTIONS

The material appearing in 21 F. R. 7027-7030 of September 19, 1956 is amended as follows:

The purpose of this amendment is to (1) establish in the Office of International Cooperation the Flight Operations and Airworthiness Division and to define the functions of the new Division, (2) reassigning the responsibilities of the Research and Development Coordinator and the Program Planning Office to a new Planning and Development Office, and (3) to provide for the administration and enforcement of Transportation Orders as they apply to the shipment and transportation of goods by air which authority is now contained in Supplement No. 5 to Department Order No. 128 of March 21, 1956. Accordingly, Department Order No. 86 (Amended) of July 1, 1956, is amended as follows.

Subsection (5) of section 6.01 is amended to read as follows:

(5) The Office of International Cooperation plans and recommends coordinated policies and program requirements with respect to the responsibilities of the Administrator of Civil Aeronautics for international aviation; provides for representation by the Administrator of Civil Aeronautics in negotiations with other United States agencies, foreign governments, the International Civil Aviation Organization and other international organizations on international aviation matters; provides technical civil aviation assistance in foreign countries; directs the activities of Civil Aeronautics Administration employees assigned abroad under technical assistance programs; arranges for and coordinates the technical aeronautical training of foreign nationals in the United States; directs the Administrator's program for determining and evaluating deficiencies in air navigation aids and aviation services in international aviation and initiating action to eliminate specific deficiencies; provides, in accordance with directives,

policies and programs of the Office of Flight Operations and Airworthiness, for the inspection and certification of U. S. air carriers, aircraft, airmen, and air agencies engaged in international and overseas operations, foreign carriers conducting operations to or within U. S. territory, and foreign airmen and aeronautical manufacturers, as required. The Office of International Cooperation has a Technical Assistance Division, an ICAO Division, and a Flight Operations and Airworthiness Division.

Subsection (1) of section 2.02 is changed by deleting "Research and Development Coordinator.".

Subsection (4) of section 2.02 is changed by revising "Program Planning Office" to read "Planning and Development Office."

Subsection (2) of section 5.02 is changed by deleting the present paragraph (a) and redesignating paragraph (b) as new paragraph (a).

Subsection (2) of section 7.01 is changed to read as follows:

(2) The Planning and Development Office provides staff assistance to the Office of the Administrator in the development of long-range civil aviation policy and programs, and in the coordination and evaluation of all research and development activities of the agency as follows: (a) Identifies and analyzes basic program policy questions in civil and their relationship to programs and operations of the Civil Aeronautics Administration; conducts studies to provide indices of long-range future trends for use in determining future operational requirements and specific programs, plans, procedures and policies for current needs, and for orderly transition to new developments designed to meet future needs; coordinates the planning activities of the Program Offices to ensure the development of integrated plans for all of the agency's programs; conducts statistical research and economic studies for planning the agency's program; provides for or directs the collection, analysis, and dissemination of all statistical data for determining the needs of civil aviation, the development of appropriate plans for meeting those needs, and the conduct of the Civil Aeronautics Administration's programs; (b) reviews all plans for research and development projects to be conducted by, or under arrangements made by, the Civil Aeronautics Administration; determines the scope, timing, and assignment of research and development projects; coordinates the evaluation of results of research and development projects and of recommendations for their implementation; (c) conducts or coordinates liaison with planning organizations, such as the Air Coordinating Committee and the program planning staffs of other governmental organizations, including the military Departments, concerned with aeronautical problems, policies, and programs, and represents the Administrator of Civil Aeronautics in dealing with research and development organizations of the Military Departments and other agencies both within and outside the Federal government.

Section 3.02 is amended to read as follows:

.02 The Administrator of Civil Aeronautics shall also carry out the power and responsibility vested in and delegated to the Secretary of Commerce under the Defense Production Act of 1950, as amended, with respect to the administration and enforcement of Transportation Orders as they apply to the shipment and transportation of goods by air and those portions of the defense production program relating to civil aviation not otherwise reserved or assigned.

Effective date: February 15, 1957.

SINCLAIR WEEKS,
Secretary of Commerce.

[F. R. Doc. 57-2333; Filed, Mar. 26, 1957; 8:50 a. m.]

[Dept. Order 97, Revised]

CIVIL AERONAUTICS BOARD

DETERMINATIONS INCIDENT TO ROUTINE MANAGEMENT FUNCTIONS

SECTION 1. *Purpose.* The purpose of this order is to designate the facilities through which the routine management functions of the Civil Aeronautics Board shall be performed.

SEC. 2. *Designation of facilities.* .01 Pursuant to the authority vested in the Secretary of Commerce in Section 7 of Reorganization Plan No. 4, effective June 30, 1940, the Civil Aeronautics Board is designated to perform its own budgeting, accounting, pay rolling, personnel, procurement, and other related routine management functions.

.02 The Civil Aeronautics Board may utilize departmental printing and duplicating services on a reimbursable basis.

Effective date: February 27, 1957.

SINCLAIR WEEKS,
Secretary of Commerce.

[F. R. Doc. 57-2334; Filed, Mar. 26, 1957; 8:50 a. m.]

ATOMIC ENERGY COMMISSION

[Docket No. F-13]

BABCOCK & WILCOX CO.

NOTICE OF ISSUANCE OF FACILITY LICENSE AUTHORIZING OPERATION OF CRITICAL EXPERIMENTS FACILITY

Please take notice that the Atomic Energy Commission on March 20, 1957, issued facility license No. CX-1, authorizing The Babcock & Wilcox Company to operate a critical experiments facility. The license is substantially as set forth in the notice of proposed action published in the FEDERAL REGISTER on March 6, 1957, 22 F. R. 1419.

A copy of the license is on file in the AEC Public Document Room located at 1717 H Street NW., Washington, D. C.

Dated at Washington, D. C., this 20th day of March 1957.

For the Atomic Energy Commission.

H. L. PRICE,
Director,
Division of Civilian Application.

[F. R. Doc. 57-2331; Filed, Mar. 26, 1957; 8:49 a. m.]

[Docket No. F-32]

AEROJET-GENERAL NUCLEONICS

NOTICE OF ISSUANCE OF LICENSE

Please take notice that the Atomic Energy Commission on March 14, 1957, issued License No. R-9 set forth below to Aerojet-General Nucleonics for a 100 milliwatt reactor designated by the applicant as Model AGN-201, Serial No. 102.

Dated at Washington, D. C., this 20th day of March 1957.

For the Atomic Energy Commission.

H. L. PRICE,
Director,
Division of Civilian Application.

LICENSE NO. R-9

1. Subject to the conditions and requirements incorporated herein, the Atomic Energy Commission hereby licenses Aerojet-General Nucleonics, San Ramon, California (hereinafter referred to as "AGN").

a. Pursuant to section 104c of the Atomic Energy Act of 1954 (hereinafter referred to as "the act"), and Title 10, CFR, Chapter I, Part 50, "Licensing of Production and Utilization Facilities," to possess and operate as a utilization facility the nuclear reactor (hereinafter referred to as "the facility") designated below;

b. Pursuant to the act and Title 10, CFR, Chapter I, Part 70, "Special Nuclear Materials Regulations," to receive, possess and use up to 700 grams of contained uranium 235 in uranium oxide (UO_2) as fuel for operation of the facility.

c. Pursuant to the act and Title 10, CFR, Chapter I, Part 30, "Licensing of By-Product Material," to possess, but not to separate from the fuel or target materials such by-product material as may be produced from operation of the reactor.

2. This license applies to the nuclear reactor designated by the applicant as Model AGN-201, Serial No. 102 which is owned by AGN and located at San Ramon, California, and described in the application and documents incorporated therein by reference.

3. This license shall be deemed to contain and be subject to the conditions specified in section 50.54 of Part 50 and section 70.32 of Part 70; is subject to all applicable provisions of the Atomic Energy Act of 1954 and rules, regulations and orders of the Atomic Energy Commission now or hereafter in effect, and is subject to any additional conditions specified or incorporated below.

4. The conditions and requirements contained in Appendix "A", attached hereto, are a part of this license.

5. This license is effective as of the date of issuance and shall expire at midnight, February 21, 1977, unless sooner terminated.

Date of issuance: March 14, 1957.

Dated at Washington, D. C., this 20th day of March 1957.

For the Atomic Energy Commission.

H. L. PRICE,
Director,
Division of Civilian Application.

APPENDIX "A"

I. *Operating restrictions.* a. AGN shall operate the reactor in accordance with the procedures described in its application and documents incorporated therein by reference.

b. AGN shall not by-pass any control mechanism during the operation of the facility.

c. AGN shall not operate the reactor at power levels in excess of 100 milliwatts without previous authorization from the Commission.

II. *Records.* In addition to those otherwise required under this license, AGN shall keep the following records:

a. Reactor operating records, including power levels.

b. Record of in-pile irradiations.

c. Records showing radioactivity released or discharged into the air or water beyond the effective control of AGN as measured at the point of such release or discharge.

d. Records of emergency reactor scrams, including reasons for emergency shutdowns.

III. *Reports.* AGN shall make a prompt report to the Commission of any unusual operating incident of the reactor.

[F. R. Doc. 57-2332; Filed, Mar. 26, 1957; 8:50 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 11735; FCC 57M-252]

NEVADA TELECASTING CORP. (KAKJ)

ORDER CONTINUING HEARING CONFERENCE

In the matter of revocation of television construction permit of Nevada Telecasting Corporation (KAKJ), Reno, Nevada.

On the oral request of counsel for the Broadcast Bureau, and without objection by counsel for respondent, *It is ordered*, This 20th day of March 1957, that the further prehearing conference now scheduled for March 21, 1957, is continued to Wednesday, March 27, 1957, at 2 p. m., in the offices of the Commission, Washington, D. C.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-2349; Filed, Mar. 26, 1957; 8:53 a. m.]

[Docket No. 11932; FCC 57M-238]

NEW JERSEY EXCHANGES, INC. (KEC738)

ORDER CONTINUING HEARING

In the matter of the application of New Jersey Exchanges, Inc. (KEC738), Docket No. 11932, File No. 2379-C2-P-56; for a construction permit to establish a new station for two-way communications in the Domestic Public Land Mobile Radio Service at Ridgewood, New Jersey.

The Hearing Examiner having under consideration a petition filed March 18, 1957, on behalf of Telephone Secretarial Service, Inc. requesting that the dates for the exchange of exhibits and the introduction of exhibits and the cross-examination of witnesses be extended from March 19, 1957 and March 26, 1957 respectively to March 26, 1957, and April 2, 1957, respectively; and

It appearing that the requested extension is necessary to allow an additional week in which to prepare engineering material, that counsel for the applicant and the Chief, Common Carrier Bureau have consented to the requested continuance and to waive the provisions of § 1.745 of the Commission's rules, that good cause for the requested extension has been shown but the Hearing Examiner's schedule is such that the evidentiary hearing cannot begin prior to April 3, 1957;

It is ordered, This the 19th day of March 1957 that the petition for extension of time is granted and the date for the exchange of exhibits is extended from March 19, 1957, to March 26, 1957, and the date for the introduction of exhibits and the cross-examination of witnesses is extended from March 26, 1957, to April 3, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-2350; Filed, Mar. 26, 1957; 8:53 a. m.]

[Docket Nos. 11940, 11941; FCC 57M-231]

SARKES TARZIAN, INC., AND GEORGE A. BROWN, JR.

ORDER SCHEDULING PREHEARING CONFERENCE

In re applications of Sarkes Tarzian, Inc., Bowling Green, Kentucky, Docket No. 11940, File No. BPTC-2114; George A. Brown, Jr., Bowling Green, Kentucky, Docket No. 11941, File No. BPCT-2131; for construction permits for new television stations.

It is ordered, This 19th day of March 1957, that a prehearing conference in the above-entitled proceeding will be held in the Offices of the Commission, Washington, D. C., on Thursday, March 28, 1957, commencing at 10 a. m.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-2351; Filed, Mar. 26, 1957; 8:53 a. m.]

[Docket No. 11944; FCC 57M-253]

PACIFIC BROADCASTERS

NOTICE OF PRE-HEARING CONFERENCE

In re application of J. Claude Warren, Paul E. Wilkins and J. Q. Floyd, d/b as Pacific Broadcasters, Oxnard, California, Docket No. 11944, File No. BP-9270; for construction permit.

Notice is hereby given that a pre-hearing conference will be held in the above-entitled proceeding at 10 o'clock a. m., on Tuesday, April 2, 1957, in the offices of this Commission, Washington, D. C.

Dated this 21st day of March 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-2352; Filed, Mar. 26, 1957; 8:53 a. m.]

[FCC 57-287]

CONELRAD

PUBLICATION OF MANUALS, VOLUNTARY PLANS AND AMENDMENTS THERETO

In the matter of publication in the FEDERAL REGISTER of CONELRAD manuals, voluntary plans, and amendments thereto.

In view of the fact that arrangements are being completed to furnish each licensee, at the time of application for, renewal of, or modification of his station license, with a copy of the applicable CONELRAD manuals, voluntary plans, and amendments thereto, these manuals, plans and amendments will no longer be published in the FEDERAL REGISTER. Copies may be obtained directly from the Federal Communications Commission.

Adopted: March 20, 1957.

Released: March 22, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-2353; Filed, Mar. 26, 1957; 8:53 a. m.]

FEDERAL POWER COMMISSION

[Docket Nos. G-4557, G-10285]

HOPE PRODUCING CO. AND SAM SKLAR

NOTICE OF APPLICATIONS AND DATE OF HEARING

MARCH 21, 1957.

In the matters of Hope Producing Company, Docket No. G-4557; of Sam Sklar, operator, Docket No. G-10285.

Take notice that Hope Producing Company (Hope), a Delaware corporation with its principal place of business in Monroe, Louisiana, filed an application in Docket No. G-4557 for a certificate of public convenience and necessity, pursuant to section 7 (c) of the Natural Gas Act, authorizing it to continue the sale of natural gas in interstate commerce to Arkansas-Louisiana Gas Company for resale, from production in the Ada Field, Webster and Bienville Parishes, Louisiana, as more fully represented in the application filed with the Commission on October 25, 1954, and open to public inspection.

On July 12, 1956, Hope amended its application in Docket No. G-4557 to delete therefrom any request for a certificate of public convenience and necessity authorizing sales of gas to

Arkansas-Louisiana Gas Company, insofar as said gas may be attributable to interests assigned to Sam Sklar by certain instruments incorporated by reference and made a part of the application herein.

Sam Sklar, Operator, with his principal place of business in Shreveport, Louisiana, filed on April 19, 1956, an application in Docket No. G–10285, for a certificate of public convenience and necessity pursuant to section 7 (c) of the Natural Gas Act, authorizing him to sell natural gas in interstate commerce to Arkansas-Louisiana Gas Company for resale, from production from the Sam Sklar-Mott Unit No. 1 in the Ada Field, acquired from Hope Producing Company and described herein, all as more fully represented in the application in Docket No. G–10285, which is on file with the Commission and open to public inspection.

These related matters should be heard on a consolidated record and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on April 30, 1957 at 9:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G. Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such applications: *Provided, however,* that the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised it will be unnecessary for Applicants to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before April 10, 1957. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] JOSEPH H. GUTRIDE,
Secretary.

[F. R. Doc. 57–2318; Filed, Mar. 26, 1957; 8:46 a. m.]

[Docket No. 8969 etc.]

TEXAS CO.

NOTICE OF CONTINUANCE OF HEARING

MARCH 21, 1957.

In the Matters of The Texas Co., Docket Nos. G–8969, G–9161, G–9576, G–9593, G–9594, G–9595, G–9596, G–9609, G–10884, G–11321, G–11322, G–11323, and G–11333; The Texas Company (Operator), Docket Nos. G–11324, G–11391, and G–11710.

Upon consideration of the motion filed March 13, 1957 by Counsel for The Texas Company for continuance of the hearing now scheduled for April 8, 1957 in the above-designated matters;

Notice is hereby given that the hearing in these matters is postponed to commence at 10:00 a. m., e. d. s. t., June 24, 1957 in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C.

[SEAL] JOSEPH H. GUTRIDE,
Secretary.

[F. R. Doc. 57–2340; Filed, Mar. 26, 1957; 8:51 a. m.]

[Docket No. G–11284]

HOPE NATURAL GAS CO.

NOTICE OF APPLICATION AND DATE OF HEARING

MARCH 21, 1957.

Take notice that Hope Natural Gas Company (Applicant), a West Virginia corporation whose address is Clarksburg, West Virginia, filed on October 24, 1956, an application for permission to abandon facilities, pursuant to section 7 of the Natural Gas Act, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Applicant seeks permission to abandon two 500-horsepower gas engine compressor units at its Kennedy Compressor Station in Lewis County, West Virginia. This station is used principally to compress locally produced gas for delivery to Hastings Station.

Applicant states that the available volume of gas produced from the area served by the Kennedy Compressor Station has diminished until it is no longer necessary to operate its two 500-horsepower "Rathbun Jones" engine units. These 38-year old machines represent less than 16 percent of the 6,350 total installed horsepower in the compressor station. During the last two years they have been operated only 220¼ hours, or slightly more than one percent of the possible operating time. Repair parts are unavailable for the two compressors.

Applicant claims that no curtailment of service will result from the proposed abandonment of the two compressors. Maintenance and operating expense on them will be eliminated. It is proposed to sell them for scrap to the highest bidder.

This matter should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on April 19, 1957, at 9:30 a. m., e. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before April 8, 1957. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made. Under the procedure herein provided for, unless otherwise advised it will be unnecessary for Applicant to appear or be represented at the hearing.

[SEAL] JOSEPH H. GUTRIDE,
Secretary.

[F. R. Doc. 57–2319; Filed, Mar. 26, 1957; 8:47 a. m.]

[Docket Nos. 11448, 11449]

TRANSCONTINENTAL GAS PIPE LINE CORP. ET AL.

NOTICE OF APPLICATION

MARCH 21, 1957.

In the matters of Transcontinental Gas Pipe Line Corporation, Docket No. G–11448; Vincent & Welch, Inc., et al., Docket No. G–11449.

Transcontinental Gas Pipe Line Corporation (Transco), a Delaware corporation, with its principal place of business in Houston, Texas, filed an application on November 8, 1956, pursuant to section 7 of the Natural Gas Act for a certificate of public convenience and necessity authorizing the construction and operation of a 4-inch tap on its existing 20-inch Egan-Jennings-Union Oil purchase lateral, Acadia Parish, Louisiana, for the purpose of receiving natural gas from the Grand Coulee Field, Acadia Parish, Louisiana, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Vincent & Welch, Inc., acting Individually and as Operator, a Louisiana corporation with its principal place of business in Lake Charles, Louisiana; Natural Bulk Carriers, Inc., a Delaware corporation with its principal place of business in New York City, New York; George C. McGhee with a principal place of business in Dallas, Texas; and Howard S. Cole, Jr., with a principal place of business in Houston, Texas, hereinafter referred to as Producer Applicants, filed a joint application on November 8, 1956, pursuant to section 7 of the Natural Gas Act for a certificate of public convenience and necessity authorizing Producer Applicants to sell natural gas in interstate commerce to Transco for resale, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Transco proposes to construct and operate facilities for the purpose of purchasing from and accepting deliveries of natural gas produced by Producer Applicants in the Grand Coulee Field, Acadia Parish, Louisiana. The contract covering the proposed sale of natural gas, dated August 1, 1956, is for a period of 20 years, with a take or pay for provision based upon the number of wells drilled. The said contract purports to dedicate the certain areas of acreage described in Exhibit A to said contract, and with reference to which each of the Sellers (Producer Applicants) sells to Transco such gas or interest in the gas produced from the leases dedicated therefor, and that each seller is selling individually and not jointly.

Temporary authorizations were issued Transco and Producer Applicants on December 21, 1956, authorizing the requested construction and operation by Transco, and sales by Producer Applicants.

These related matters should be heard on a consolidated record and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on May 8, 1957, at 9:30 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such applications: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised it will not be necessary for Applicants to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before April 15, 1957. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] JOSEPH H. GUTRIDE,
Secretary.

[F. R. Doc. 57-2320; Filed, Mar. 26, 1957; 8:47 a. m.]

[Docket No. G-11486]

TEXAS GAS TRANSMISSION CORP.

NOTICE OF APPLICATION AND DATE OF HEARNG

MARCH 21, 1957.

Take notice that Texas Gas Transmission Corporation (Applicant), a Delaware corporation with its principal place of business in Owensboro, Kentucky, filed, on November 15, 1956, an application as supplemented on December 19, 1956, for permission and approval to abandon facilities, pursuant to section 7 (b) of the Natural Gas Act, as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open to public inspection.

Applicant seeks to abandon a portion of its 18-inch and 10-inch pipeline system consisting of approximately 40 miles of pipeline together with 12 metering stations and appurtenances all located within Shelby County, Tennessee near Memphis.

Applicant states that the facilities in question were originally built in 1928, 1931 and 1946 and acquired by it from the Memphis Natural Gas Company in 1948, and are presently utilized exclusively for service to the Memphis Light, Gas and Water Division of the City of Memphis, which has agreed to purchase the facilities for use as a part of its distribution system.

Applicant states that since construction of the lines, the area surrounding these facilities has become largely residential in character, and can be readily integrated into Memphis' local distribution system.

Applicant states further that a new meter and regulator station will be constructed by it on the southern boundary of Shelby County on the 18-inch system originating in Louisiana and connected to the system to be sold. This station will be the sole delivery point for the gas to Memphis from the 18-inch system. Texas Gas will maintain an emergency connection with Memphis between the northern terminus of the facilities to be transferred and the existing 10-inch line of Texas Gas at the northern boundary of Shelby County.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on April 30, 1957, at 9:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before April 12, 1957. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] JOSEPH H. GUTRIDE,
Secretary.

[F. R. Doc. 57-2316; Filed, Mar. 26, 1957; 8:46 a. m.]

[Docket Nos. 11563, 11712]

UNION OIL AND GAS CORPORATION OF LOUISIANA ET AL.

ORDER CONSOLIDATING PROCEEDINGS FOR HEARING AND DISMISSING PETITION TO INTERVENE

MARCH 21, 1957.

In the matters of Union Oil and Gas Corporation of Louisiana, Docket No. G-11563; H. S. Cole, Jr., et al., Docket No. G-11712.

The Commission, by order issued December 7, 1956, in Docket No. G-11563, provided for hearing concerning the lawfulness of changes in rates and charges proposed by Union Oil and Gas Corporation of Louisiana to its FPC Gas Rate Schedules Nos. 2 and 3, and pending such hearing and decision thereon, suspended and deferred the use of those proposed changes, pursuant to the provisions of section 4 (e) of the Natural Gas Act.

Similarly, by order issued January 9, 1957, in Docket No. G-11712, the Commission provided for hearing concerning the lawfulness of proposed changes in rates and charges tendered for filing by H. S. Cole, Jr., et al., to his FPC Gas Rate Schedule No. 3, and pending such hearing and decision thereon, suspended and deferred the use of those proposed changes, pursuant to the provisions of section 4 (e) of the Act.

In accordance with the notice issued February 25, 1957, by the Secretary of the Commission, hearing has been scheduled in Docket No. G-11563 commencing April 24, 1957.

On February 28, 1957, petition to intervene in Docket No. G-11563 was filed on behalf of H. S. Cole, Jr., et al. That petition sets forth that the aforementioned rate schedules of Union and Cole relate to sales of natural gas by those parties to Texas Gas Transmission Corporation from their respective working interests in wells and units in the South Lewisburg Field, Acadia Parish, Louisiana. The allegations of that petition further indicate that the proceedings in the above dockets may involve common questions of law or fact.

It is appropriate and in the public interest, therefore, that the proceedings in Docket Nos. G-11563 and G-11712 be consolidated for purposes of hearing. Under such consolidation, the petition to intervene in Docket No. G-11563 filed on behalf of H. S. Cole, Jr., et al., is unnecessary and should be dismissed.

The Commission orders:

(A) The proceedings in Docket Nos. G-11563 and G-11712 hereby are consolidated for purposes of hearing.

(B) A public hearing respecting the matters involved and the issues presented in these consolidated proceedings be held commencing April 24, 1957, at 10:00

a. m., e. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., as heretofore scheduled by the Secretary of the Commission by notice issued February 25, 1957, in Docket No. G–11563.

(C) In view of the consolidation herein ordered, the petition to intervene in Docket No. G–11563, filed on February 28, 1957, on behalf of H. S. Cole, Jr., et al., hereby is dismissed.

(D) Interested State Commissions may participate as provided by §§ 1.8 and 1.37 (f) of the Commission's rules of practice and procedure (18 CFR 1.8 and 1.37 (f)).

By the Commission.

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

[F. R. Doc. 57–2339; Filed, Mar. 26, 1957; 8:51 a. m.]

[Docket No. G–12264]

EAST TENNESSEE NATURAL GAS CO.

ORDER SUSPENDING PROPOSED REVISED TARIFF SHEETS AND PROVIDING FOR HEARING

MARCH 21, 1957.

On February 20, 1957, East Tennessee Natural Gas Company (East Tennessee), tendered for filing Second Revised Sheets Nos. 5, 8, 11, 14, 16, 17, 19, and 20 to its FPC Gas Tariff, Third Revised Volume No. 1, which revisions propose increases in its rates and charges aggregating approximately $578,070, or 8.7 percent, per annum based on sales for the year ending January 31, 1957, as adjusted. The proposed increase is in addition to the increased rates and charges in effect subject to refund under Docket No. G–5470.

East Tennessee states that the proposed increases are due primarily to the recent filing of a proposed rate increase by Tennessee Gas Transmission Company (Tennessee), its sole supplier. It requests that the increased rates and charges be permitted to become effective as of March 23, 1957, or, in any event, at a date not later than the date upon which the increased rates and charges of Tennessee would become effective.

The Commission on February 13, 1957 ordered a hearing in Docket No. G–11980 concerning the lawfulness of the increased rates and charges proposed by Tennessee, and, pending such hearing and decision thereon, such proposed rates and charges have been suspended until July 14, 1957, unless otherwise ordered by the Commission, and until such further time thereafter as they may be made effective in the manner prescribed by the Natural Gas Act. East Tennessee's proposed increase is dependent in part upon and can be supported only by relying upon the effectiveness of the revised rates and charges of its supplier, and should therefore be suspended pending determination of said effectiveness.

The Commission finds: It is necessary and proper in the public interest, and to aid in the enforcement of the provisions of the Natural Gas Act, that the Commission enter upon a hearing concerning the lawfulness of the rates, charges, classifications, and services contained in East Tennessee's FPC Gas Tariff, Third Revised Volume No. 1, as proposed to be amended by Second Revised Sheets Nos. 5, 8, 11, 14, 16, 17, 19, and 20, and that the said proposed tariff sheets and the increased rates and charges contained therein be suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 4 and 15 of the Natural Gas Act, and the Commission's regulations under the Natural Gas Act, including rules of practice and procedure (18 CFR Ch. I), a public hearing be held at a time and date to be fixed by notice from the Secretary of this Commission, concerning the lawfulness of the rates, charges, classifications, and services, subject to the jurisdiction of the Commission, contained in East Tennessee's FPC Gas Tariff, Third Revised Volume No. 1 as proposed to be amended by Second Revised Sheets Nos. 5, 8, 11, 14, 16, 17, 19, and 20.

(B) Pending such hearing and decision thereon, the proposed rates and charges contained in the revised tariff sheets referred to in (A) above hereby are suspended and their use deferred until July 14, 1957, unless otherwise ordered by the Commission, and until such further time thereafter as they may be made effective in the manner prescribed by the Natural Gas Act.

(C) Interested state commissions may participate as provided by §§ 1.8 and 1.37 (f) of the Commission's rules of practice and procedure (18 CFR 1.8 and 1.37 (f)).

By the Commission.

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

[F. R. Doc. 57–2317; Filed, Mar. 26, 1957; 8:46 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 24D–1785]

TEXAS WESTERN OIL AND URANIUM CO.

ORDER TEMPORARILY SUSPENDING EXEMPTION, STATEMENT OF REASONS THEREFOR, AND NOTICE OF OPPORTUNITY FOR HEARING

MARCH 21, 1957.

I. Texas Western Oil and Uranium Co. (hereinafter referred to as the "issuer"), 407 Denver National Building, Denver, Colorado, for the purpose of obtaining an exemption from the registration requirements of the Securities Act of 1933, as amended, pursuant to the provisions of section 3 (b) thereof and Regulation A promulgated thereunder, filed with the Commission on June 15, 1955 a notification on Form 1–A and an offering circular, and subsequently filed on amendment thereto, relating to a proposed offering of 5,960,000 shares of its 1¢ par value common stock at 5¢ per share.

II. The Commission has reasonable grounds to believe that the terms and conditions of Regulation A have not been complied with in that:

A. The issuer has failed to file a report of sales on Form 2–A as required by Rule 224 under Regulation A.

B. The notification and offering circular contain untrue statements of material facts and omit to state material facts necessary in order to make the statements made, in the light of the circumstances under which they are made, not misleading, in that:

1. The offering circular fails to disclose the correct address of the issuer as required by Rule 219 (c) (1) of Regulation A.

2. The offering circular states that Floyd Koster and Company, as underwriter, will use its best efforts to sell the issue, whereas said firm is not now acting as underwriter for the issuer with respect to this proposed offering.

III. *It is ordered,* Pursuant to Rule 223 (a) of the general rules and regulations under the Securities Act of 1933, as amended, that the exemption under Regulation A for the aforesaid offering of issuer's common stock be, and it hereby is, temporarily suspended.

Notice is hereby given that any person having any interest in the matter may file with the Secretary of the Commission a written request for a hearing; that, within 20 days after receipt of such request, the Commission will, or at any time upon its own motion may, set the matter down for hearing at a place to be designated by the Commission for the purpose of determining whether this order of suspension should be vacated or made permanent, without prejudice, however, to the consideration and presentation of additional matters at the hearing; and that notice of the time and place of said hearing will be promptly given by the Commission.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 57–2322; Filed, Mar. 26, 1957; 8:47 a. m.]

[File No. 68–167]

UNION ELECTRIC CO.

ORDER PERMITTING DECLARATION TO BECOME EFFECTIVE REGARDING SOLICITATION OF PROXIES

MARCH 21, 1957.

By order dated February 27, 1957 (Holding Company Act Release No. 13399) the Commission prohibited Union Electric Company ("Union"), a registered holding company, and all other persons from soliciting any proxy or other authorization regarding the voting of any security of Union in connection with the annual meeting of Union's stockholders to be held April 20, 1957 except pursuant to a declaration, filed under section 12 (e) of the Public Utility Holding Company Act of 1935 ("act") and Rule U–62 promulgated thereunder, which shall have been permitted by the Commission to become effective.

Union thereafter filed a declaration and amendments thereto in regard to its proposed solicitation of proxies in con-

nection with such meetings and the expenditure of corporate funds in furtherance thereof.

After appropriate notice (Holding Company Act Release No. 13410) a public hearing was held on Union's declaration at which counsel appeared for Union and for the Commission's Division of Corporate Regulation. J. Raymond Dyer, a Union stockholder, was granted leave to participate on behalf of himself and his daughter, Nancy Corinne Dyer, also a Union stockholder.

The Commission, having considered the record herein and the brief filed by the said J. Raymond Dyer, finds that the declaration, as amended, filed by Union would meet the applicable standards of the act if further amended as hereinafter indicated and that due to the exigencies of the situation it is appropriate in the public interest and the interest of investors and consumers that this order be issued in advance of the issuance and release of the Commission's findings and opinion:

It is ordered, That upon the filing of an appropriate further amendment, Union's declaration shall become effective, such amendment to include:

(a) A reference in the proxy statement to the pending investigations by the Commission to determine whether Union has violated the provisions of section 12 (h) of the act.

(b) A reference in the proxy statement that the Division of Corporate Regulation presented as an issue to be determined at the hearing herein the appropriateness, under the standards of section 12 (e) of the act, of the resolution proposed by J. Raymond Dyer which, if adopted, would authorize the Directors of Union to reimburse expenses of soliciting proxies to any insurgent group of stockholders which is successful in electing a majority of the Board of Union at the next annual meeting and that the Commission did not resolve such issue but reserved jurisdiction with respect thereto.

It is further ordered, That jurisdiction be, and hereby is, reserved with respect to the following:

(a) To determine the appropriateness of the allocation proposed by Union of expenses in connection with Union's solicitation of proxies for its annual meeting to be held April 20, 1957.

(b) To determine the appropriateness of the resolution referred to in paragraph (b) above.

(c) To pass upon any additional solicitation material proposed to be used by Union which material shall be filed as a post-effective amendment herein and which material, unless the Commission orders a hearing thereon, may be used for solicitation after five business days have elapsed from the filing thereof or after such shorter period as the Commission may authorize upon good cause shown.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 57-2323; Filed, Mar. 26, 1957; 8:47 a. m.]

SMALL BUSINESS ADMINISTRATION

[Declaration of Disaster Area 126]

TERRITORY OF HAWAII

DECLARATION OF DISASTER AREA

Whereas, it has been reported that beginning on or about March 9, 1957, because of the disastrous effects of tidal waves, damage resulted to residences and business property located in certain areas in the Territory of Hawaii;

Whereas, the Small Business Administration has investigated and has received other reports of investigations of conditions in the areas affected; and

Whereas, after reading and evaluating reports of such conditions, I find that the conditions in such areas constitute a catastrophe within the purview of the Small Business Act of 1953, as amended;

Now, therefore, as Administrator of the Small Business Administration, I hereby determine that:

1. Applications for disaster loans under the provisions of section 207 (b) (1) of the Small Business Act of 1953, as amended, may be received and considered by the Office below indicated from persons or firms whose property situated in the following Districts (including any areas adjacent to the Districts below named) suffered damage or other destruction as a result of the catastrophe above referred to:

Districts: Hanalei and Haena, Island of Kauai; and Waialua, Island of Oahu.

Office: Small Business Administration Branch Office, 440 South Hotel Street, Rooms 1 and 2, Honolulu, Hawaii.

2. A special field office to receive and process such applications will be established on the Island of Kauai.

3. Applications for disaster loans under the authority of this Declaration will not be accepted subsequent to September 30, 1957.

Dated: March 15, 1957

WENDELL B. BARNES, *Administrator.*

[F. R. Doc. 57-2325; Filed, Mar. 26, 1957; 8:48 a. m.]

UNITED STATES TARIFF COMMISSION

[Investigation 15]

TUNG OIL

NOTICE OF INVESTIGATION AND HEARING

Institution of investigation. By direction of the President, in a letter dated March 21, 1957, the United States Tariff Commission, on the 22d day of March 1957, instituted, and hereby gives notice of, an investigation under section 22 of the Agricultural Adjustment Act, as amended, and Executive Order 7233 of November 23, 1935, for the purpose of determining whether Tung oil is being or is practically certain to be imported into the United States under such conditions and in such quantities as to render or tend to render ineffective, or materially interfere with, the price-support program for tung nuts and tung oil undertaken by the Department of Agriculture, or to reduce substantially the amount of products processed in the United States from domestic tung nuts or tung oil with respect to which such program is being undertaken.

Hearing. A public hearing in connection with this investigation will be held in the Tariff Commission hearing room, Tariff Commission Building, Eighth and E Streets NW., Washington, D. C., beginning at 10 a. m., e. d. s. t., on May 2, 1957. All parties interested will be given opportunity to be present, to produce evidence, and to be heard at such hearing.

Request to appear. Interested parties desiring to appear at the public hearing should notify the Secretary of the Tariff Commission, in writing, at its offices in Washington, D. C., at least 3 days in advance of the date set for the hearing.

Issued: March 22, 1957.

By order of the Commission.

[SEAL] DONN N. BENT, *Secretary.*

[F. R. Doc. 57-2356; Filed, Mar. 26, 1957; 8:54 a. m.]

INTERSTATE COMMERCE COMMISSION

[Notice 157]

MOTOR CARRIER APPLICATIONS

MARCH 22, 1957.

The following applications are governed by the Interstate Commerce Commission's special rules governing notice of filing of applications by motor carriers of property or passengers and by brokers under sections 206, 209, and 211 of the Interstate Commerce Act and certain other procedural matters with respect thereto. (FEDERAL REGISTER, Volume 21, pages 7339, 7340, § 1.241, September 26, 1956.)

All hearings will be called at 9:30 o'clock a. m., United States standard time (or 9:30 o'clock a. m., local daylight saving time, if that time is observed), unless otherwise specified.

APPLICATIONS ASSIGNED FOR ORAL HEARING OR PRE-HEARING CONFERENCE

MOTOR CARRIERS OF PROPERTY

No. MC 730 (Sub No. 93), filed January 14, 1957, PACIFIC INTERMOUNTAIN EXPRESS CO., a Nevada Corporation, 299 Adeline Street, Oakland, Calif. For authority to operate as a *common carrier,* over irregular routes, transporting: *Shale oil, shale oil products and by-products, gilsonite products and by-products,* and *coal products and by-products,* in bulk, in tank vehicles, between points in Colorado, Wyoming, Utah and New Mexico. Applicant is authorized to transport bulk liquid commodities in California, Arizona, Utah, Nevada, Washington, Montana, Oregon, Idaho, Wyoming, and Colorado.

HEARING: May 14, 1957, at the Utah Public Service Commission, Salt Lake

City, Utah, before Examiner Frank R. Saltzman.

No. MC 21807 (Sub No. 3), filed February 4, 1957, FRED A. GEORGE, 3 Maple Avenue, Barre, Vt. Applicant's representative: Oliver C. Peterson, 3941 St. James Avenue, Milton, N. H. For authority to operate as a *common carrier*, transporting: *Granite*, serving as off-route points all points in New York within ten miles of U. S. Highways 4 and 9.

NOTE: Applicant by this application seeks to extend its authority in No. MC 21807 which authorizes the transportation of granite, over regular routes, between Montpelier, Vt. and Newark, N. J., from Montpelier over U. S. Highway 302 to Barre, Vt., thence over Vermont Highway 14 to junction Vermont Highway 107, thence over Vermont Highway 107 to Stockbridge, Vt., thence over Vermont Highway 100 to junction U. S. Highway 4, thence over U. S. Highway 4 to junction U. S. Highway 9, and thence over U. S. Highway 9 to Newark. Service is authorized to and from all intermediate points and off-route points in Washington County, Vt. and those in that part of New York and New Jersey within 15 miles of New York, N. Y.

HEARING: May 7, 1957, at the Washington County Court House, Montpelier, Vt., before Examiner Herbert L. Hanback.

No. MC 30091 (Sub No. 38), filed March 7, 1957, L. F. MILLER AND F. D. MILLER, A Partnership, doing business as MILLER MOTOR FREIGHT LINES, 501 Indiana Avenue, Wichita Falls, Tex. Applicant's attorney: Herbert L. Smith, 401 Perry-Brooks Building, Austin 1, Tex. For authority to operate as a *common carrier*, over a regular route, transporting: *Class A and B explosives*, between Dimmit, Tex., and Hereford, Tex.: from Dimmit over Texas Highway 51 to Hereford, and return over the same route, serving no intermediate or off-route points.

NOTE: Applicant states purpose of this application is to bridge the gap between Class A and B explosives' authority now held by applicant and that applied for in Docket MC–30091 (Sub No. 37).

HEARING: May 7, 1957, at the Baker Hotel, Dallas, Tex., before Joint Board No. 77.

No. MC 30244 (Sub No. 10), filed February 18, 1957, SHOEMAKER BROTHERS, INC., 1006 West College Avenue, State College, Pa. For authority to operate as a *common carrier*, over irregular routes, transporting: (1) *Brass bars and rods* and *brass unfinished shapes*, and *aluminum bars, blanks, stampings, unfinished shapes, extensions, castings, forgings, moldings, rods, scrap, twinings and borings*, from Bellefonte, Pa., and points within one mile thereof to Reedsville and Morgantown, W. Va., and empty containers or other such incidental facilities (not specified) used in transporting the commodities specified on return; (2) *Zink slabs*, from Spelter, W. Va., and *brass scrap, copper scrap, aluminum billets, blooms, ingots, pigs, slabs, borings, scrap and twinings* from Reedsville and Morgantown, W. Va., to Bellefonte, Pa., and points within one mile thereof. Applicant is authorized to transport similar commodities in Pennsylvania, Michigan, Indiana, Massachusetts, Connecticut, Rhode Island, New York, New Jersey, Delaware, and Ohio.

HEARING: April 26, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Michael B. Driscoll.

No. MC 30605 (Sub No. 92), filed February 11, 1957, THE SANTA FE TRAIL TRANSPORTATION COMPANY, a corporation, Broadway and English Streets, Wichita, Kans. Applicant's attorney: Francis J. Steinbrecher, 80 East Jackson Boulevard, Chicago 4, Ill. For authority to operate as a *common carrier*, transporting: *General commodities, including Class A and B explosives*, but excepting commodities of unusual value, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, serving the Glenn L. Martin plant site adjacent to or in the vicinity of Kassler, Colo., approximately ten miles southwest of Littleton, Colo., as an off-route point in connection with applicant's authorized regular route operations between Denver, Colo., and Albuquerque, N. Mex., over U. S. Highway 85. Applicant is authorized to transport the commodities specified in Arkansas, Colorado, Kansas, Missouri, Nebraska, New Mexico, Oklahoma, and Texas.

HEARING: May 17, 1957, at the New Customs House, Denver, Colo., before Joint Board No. 126, or, if the Joint Board waives its right to participate, before Examiner Frank R. Saltzman.

No. MC 37473 (Sub No. 18), filed March 15, 1957, DETROIT-PITTSBURGH MOTOR FREIGHT, INC., 5324 Grant Avenue, Cuyahoga Heights, Ohio. Mailing address: P. O. Box 392, Station D, Cleveland 27, Ohio. Applicant's attorney: Taylor C. Burneson, 3510 LeVeque-Lincoln Tower, Columbus 15, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, and except Class A and B explosives, livestock, household goods as defined by the Commission, and commodities in bulk, serving the site of the plant of General Motors Corporation, Euclid Division, on Ohio Highway 91 near Hudson, Ohio, as an off-route point in connection with applicant's authorized regular route operations (a) between Canton, Ohio and Detroit, Mich., and (b) between Canton, Ohio, and Pittsburgh, Pa. Applicant is authorized to transport similar commodities in Illinois, Indiana, Kentucky, Michigan, New York, Ohio, Pennsylvania, and West Virginia.

HEARING: April 24, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117, or, if the Joint Board waives its right to participate, before Examiner Reece Harrison.

No. MC 38092 (Sub No. 2), filed October 30, 1956, EARLE W. NOYES AND SON, 33 Cotton Street, Portland, Maine. Applicant's representative: George L. Bowles, 402 Clapp Memorial Building, Portland, Maine. For authority to operate as a *common carrier*, over irregular routes, transporting: *Household goods*, as defined by the Commission, between points in Androscoggin, Cumberland, except Brunswick, and York Counties, Maine, on the one hand, and, on the other, points in New Jersey, Pennsylvania, Delaware, Maryland and the District of Columbia. Applicant is authorized to conduct operations in Connecticut, Massachusetts, New Hampshire, New York, Rhode Island, Vermont, Maine, New Jersey, Pennsylvania, Delaware, Maryland, and the District of Columbia. Issues originally published in FEDERAL REGISTER of November 21, 1956, as above.

HEARING: April 17, 1957, at the Federal Building, Portland, Maine, before Examiner Lacy W. Hinely.

No. MC 50132 (Sub No. 20), filed March 13, 1957, CENTRAL & SOUTHERN TRUCK LINES, INC., Fourth and Morris Streets, Caseyville, Ill. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Canned goods, canned fruits*, and *vegetables, pimentos* and *pimento hulls, canned or in brine*, and *peanut butter*, from Haddock, Ga., and Fort Pierce, Fla., to points in Alabama, Arkansas, Illinois, Indiana, Iowa, Kansas, Louisiana, Michigan, Minnesota, Mississippi, Missouri, North Carolina, Oklahoma, South Carolina, Texas, Virginia, West Virginia, Wisconsin and Nebraska. Applicant is authorized to transport similar commodities in Alabama, Arkansas, Georgia, Illinois, Indiana, Kansas, Kentucky, Louisiana, Mississippi, Missouri, North Carolina, Ohio, South Carolina, Tennessee, and Virginia.

HEARING: May 8, 1957, at Peachtree-Seventh Building, 50 Seventh Street, NE., Atlanta, Ga., before Examiner Richard Yardley.

No. MC 52858 (Sub No. 60), filed February 18, 1957, CONVOY COMPANY, a corporation, 3900 Northwest Yeon Avenue, Portland 10, Oreg. Applicant's attorney: Marvin Handler, 465 California Street, San Francisco 4, Calif. For authority to operate as a *common carrier*, over irregular routes, transporting: *Snow tractors, snow mobiles, Muskeg tractors and other self-propelled passenger and property carrying vehicles* (other than the ordinary type of track-laying or pneumatic-tired tractors), designed for traversing or operating on snow, marsh, muskeg, slopes, sand, or any soft terrain; *trailers and sleds therefor;* and *parts* and *accessories* thereof when moving therewith, between points in Washington, Oregon, California, Nevada, Idaho, Montana, Wyoming, Utah, Arizona, Colorado, New Mexico, North Dakota, South Dakota, Nebraska, Kansas, Oklahoma, Texas, Minnesota, Iowa, Missouri, Arkansas, Louisiana, and the Territory of Alaska.

HEARING: May 13, 1957, at the Utah Public Service Commission, Salt Lake City, Utah, before Examiner Frank R. Saltzman.

No. MC 72444 (Sub No. 9), filed March 14, 1957, THE AKRON-CHICAGO TRANSPORTATION COMPANY, INC., 347 West Thornton Street, Akron, Ohio. Applicant's attorney: Charles R. Iden, 2200 First National Tower, Akron 8, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as

defined by the Commission, commodities in bulk, and those requiring special equipment, to and from the site of the Ford Motor Company plant located 5/10 mile south of U. S. Highway 6 on Baumhardt Road (which is approximately 5 miles west of Lorain, Ohio, as an off-route point now served by applicant), on the one hand, and, on the other, points served by applicant in its authorized regular route operations. Applicant is authorized to conduct similar operations in Illinois, Indiana, Ohio and New York, and the off-route points of New Castle and Sharon, in Pennsylvania.

HEARING: April 26, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117, or, if the Joint Board waives its right to participate, before Examiner Reece Harrison.

No. MC 76266 (Sub No. 96), filed March 15, 1957, MERCHANTS MOTOR FREIGHT, INC., 2625 Territorial Road, St. Paul, Minn. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, and except Class A and B explosives, household goods as defined by the Commission, commodities in bulk and those requiring special equipment, serving the site of the new Euclid Division Plant of the General Motors Corporation located near Darrowville, Summit County, Ohio, as an off-route point in connection with applicant's authorized regular route operations to and from Cleveland, Ohio. Applicant is authorized to transport similar commodities in Colorado, Illinois, Indiana, Iowa, Kansas, Michigan, Minnesota, Missouri, Nebraska, Ohio, and Wisconsin.

HEARING: April 24, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117, or, if the Joint Board waives its right to participate, before Examiner Reece Harrison.

No. MC 95540 (Sub No. 286), filed February 28, 1957, WATKINS MOTOR LINES, INC., Cassidy Road, Thomasville, Ga. Applicant's attorney: Joseph H. Blackshear, Gainsville, Ga. For authority to operate as a *common carrier*, over irregular routes, transporting: *Fertilizer*, manufactured; *fertilizer materials*, including but not restricted to phosphate, super-phosphate, triple super-phosphate; *animal and poultry feed*, and *ingredients for animal and poultry feed*, including but not restricted to citrus pulp, citrus pomace, and citrus seeds ground, between points in Florida, on the one hand, and, on the other, points in Georgia on and south of U. S. Highway 80.

HEARING: April 29, 1957, at Peachtree-Seventh Building, 50 Seventh Street NE., Atlanta, Ga., before Joint Board No. 64, or, if the Joint Board waives its right to participate, before Examiner Richard Yardley.

No. MC 99844 (Sub No. 1), filed January 11, 1957, RICHARD ESTES AND LESLEY ESTES, doing business as ESTES TRUCKING COMPANY, 124 West Second, Rifle, Colo. For authority to operate as a *common carrier*, over irregular routes, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, (1) from Rifle, Colo., to points within twenty (20) miles of Rifle, Colo., and DeBeque, Colo., and (2) between DeBeque, Colo., and points within twenty (20) miles of Rifle, Colo., including Rifle.

HEARING: May 17, 1957, at the New Customs House, Denver, Colo., before Joint Board No. 126, or, if the Joint Board waives its right to participate, before Examiner Frank R. Saltzman.

No. MC 102616 (Sub No. 636), filed March 13, 1957, COASTAL TANK LINES, INC., Grantley Road, York, Pa. Applicant's attorney: Harold G. Hernly, 1624 Eye Street NW., Washington 6, D. C. For authority to operate as a *common carrier*, over irregular routes, transporting: *Acids* and *liquid chemicals*, in bulk, in tank vehicles, between points in Kanawha County, W. Va., on the one hand, and, on the other, points in Kansas, Nebraska, Oklahoma, Texas, and Wyoming.

HEARING: April 29, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Lawrence A. Van Dyke.

No. MC 107171 (Sub No. 23), filed March 11, 1957, JULIANO BROS., INC., 39 Main Street, South Portland, Maine. Applicant's attorney: Mary E. Kelley, 84 State Street, Boston 9, Mass. For authority to operate as a *common carrier*, over irregular routes, transporting: *Containers*, and *wrapping materials*, between Hartford, and New Haven, Conn., New York, N. Y., Philadelphia, Pa., Boston, Mass., and Newark, N. J., on the one hand, and, on the other, points in that part of Maine on, south and east of U. S. Highway 1 and Alternate U. S. Highway 1 from Kittery to Hancock, Maine, including Mt. Desert Island. Applicant is authorized to conduct similar operations in Connecticut, Maine, New Jersey, New York, and Pennsylvania.

NOTE: Duplication with authorized authority to be eliminated.

HEARING: May 15, 1957, at the Federal Building, Portland, Maine, before Examiner Herbert L. Hanback.

No. MC 107311 (Sub No. 12), filed February 18, 1957, LOUIS ALLEY, 315 Diagonal Street, Clarkston, Wash. Applicant's representative: Joseph O. Earp, 1912 Smith Tower, Seattle 4, Wash. For authority to operate as a *common carrier*, over irregular routes, transporting: *Building materials* and *heavy machinery*, (1) between points in Idaho and Washington within 150 miles of Orofino, Idaho, on the one hand, and, on the other, points in Ravalli, Granite, Powell, Lewis and Clark, Flathead, Missoula, Sanders, Lake, Lincoln, Deer Lodge, Mineral, and Silver Bow Counties, Mont.; and (2) between points in Idaho and Washington within 150 miles of Orofino, Idaho, on the one hand, and, on the other, points in Umatilla, Union, Wallowa, and Baker Counties, Oreg.

HEARING: May 9, 1957, at the Davenport Hotel, Spokane, Wash., before Examiner Frank R. Saltzman.

No. MC 107515 (Sub No. 252), filed March 13, 1957, REFRIGERATED TRANSPORT CO., INC., 290 University Avenue SW., Atlanta 10, Ga. Applicant's attorney: Allan Watkins, Grant Building, Atlanta 3, Ga. For authority to operate as a *common carrier*, over irregular routes, transporting: *Frozen foods*, from St. James and Mankato, Minn., to points in Alabama, Georgia, Florida, Tennessee, and Mississippi. Applicant is authorized to conduct similar operations in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, North Carolina, Ohio, Oklahoma, South Carolina, Tennessee, Texas, Virginia, and Wisconsin.

HEARING: May 10, 1957, at Peachtree-Seventh Building, 50 Seventh Street NE., Atlanta, Ga., before Examiner Richard Yardley.

No. MC 111329 (Sub No. 2), filed February 19, 1957, CAMBRIDGE TRUCKING CO., INC., 8 Bell Court, Cambridge, Mass. Applicant's attorney: James F. Harrington, 11 Beacon Street., Boston 8, Mass. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Foodstuffs*, from Cambridge and Medford, Mass. to Westbrook, Auburn, Lewiston, Waterville, Bangor, Presque Isle, and Portland, Maine; Dover, Manchester, and Keene, N. H.; Rutland and Burlington, Vt.; Providence, R. I.; and Hartford, East Hartford, Bridgeport, New Haven, Cheshire and Torrington, Conn.; *empty containers or other such incidental facilities* (not specified) used in transporting the commodities specified in this application, on return. Applicant is authorized to transport certain foodstuffs between named points in the above-indicated states.

HEARING: May 13, 1957, at the New Post Office and Court House Building, Boston, Mass., before Examiner Herbert L. Hanback.

No. MC 111824 (Sub No. 4), filed March 13, 1957, WILLIAM R. SIMPSON, INC., Box 1, Hill Station, North 11th and Parkway, Harrisburg, Pa. Applicant's representative: John W. Frame, 603 North Front Street, Harrisburg, Pa. For authority to operate as a *common carrier*, over irregular routes, transporting: *Pipe* and *pipe fittings, steel plate or sheet*, plain or asphalt coated, from Harrisburg, Pa., to points in Delaware, Pennsylvania, Maryland, and New Jersey.

HEARING: April 29, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Michael B. Driscoll.

No. MC 112613 (Sub No. 1), filed March 11, 1957, T. ACHENBERG TRANSPORTATION CO., 208 Sheridan Street, Perth Amboy, N. J. Applicant's representative: Bert Collins, 140 Cedar Street, New York 6, N. Y. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Medicines* and *toilet preparations*, from Perth Amboy, N. J. to New York, N. Y., and points in Essex and Hudson Counties, N. J., and *returned and refused shipments* of the

above commodities and *empty pallets* on return.

NOTE: Applicant states that it is presently authorized to transport medicinal petroleum products and petroleum base toilet preparations from and to the same points and merely seeks to broaden its commodity description to serve the same shipper's additional products and no duplicating authority is sought.

HEARING: May 16, 1957, at 346 Broadway, New York, N. Y., before Examiner Herbert L. Hanback.

No. MC 113539 (Sub No. 1), filed March 14, 1957, PORTER TRANSPORTATION CO., a Corporation, St. Bernard Street, Fitchburg, Mass. Applicant's attorney: Milton E. Diehl, 1383 National Press Building, Washington 4, D. C. For authority to operate as a *common carrier*, over irregular routes, transporting: *Commercial fertilizer*, in bags, from Lowell and North Weymouth, Mass., to Hermon, Maine, and points in Aroostook County, Maine, and points in that part of Penobscot County, Maine, west of U. S. Highway 2 and north of Maine Highway 157.

HEARING: May 14, 1957, at the Federal Building, Portland, Maine, before Joint Board No. 69, or, if the Joint Board waives its right to participate, before Examiner Herbert L. Hanback.

No. MC 114112 (Sub No. 3), filed March 4, 1957, EDWARD D. SHAULIS, 527 Fremont Avenue, Fort Morgan, Colo. For authority to operate as a *common carrier*, over irregular routes, transporting: *Diamond core barrels and bits*, and *tools* used in connection therewith, (1) between points in Colorado on the one hand, and, on the other, points in New Mexico and Arizona; (2) between points in San Juan County, N. Mex., on the one hand, and, on the other, points in Colorado, Arizona and Utah. Applicant is authorized to transport similar commodities in Wyoming, Nebraska, Utah, and Colorado.

HEARING: May 16, 1957, at the New Customs House, Denver, Colo., before Examiner Frank R. Saltzman.

No. MC 115309 (Sub No. 4) (Correction), filed February 25, 1957, TRANSPORT SERVICE, a Corporation, 6395 Southeast Alberta Street, Portland, Oreg. Applicant's attorney: William B. Adams, Pacific Building, Portland 4, Oreg. For authority to operate as a *common carrier*, over irregular routes, transporting: *Fuel oils* to be used by road contractors, *asphalts* and *road oils*, from Martinez, Calif., and points within 20 miles of Martinez, to points in Curry, Coos, Jackson, Josephine, Klamath, Lake, Deschutes, Malheur, Douglas, Harney, Crook, and Grant Counties, Oreg.

HEARING: April 25, 1957, in Room 226, Old Mint Building, Fifth and Mission Streets, San Francisco, Calif., before Joint Board No. 11, or, if the Joint Board waives its right to participate, before Examiner F. Roy Linn.

NOTE: Previous publication showed the hearing date as April 26, in error. The correct date is as shown above, April 25, 1957.

No. MC 116076 (Sub No. 1), filed March 8, 1957, WALTER H. ROUNDTREE, doing business as ROUNDTREE TRUCKING COMPANY, Swainsboro, Ga. Applicant's attorney: Paul M. Daniell, 214 Grant Building, Atlanta 3, Ga. For authority to operate as a *common carrier*, over irregular routes, transporting: *Lumber*, from points in Screven, Effingham, Washington, Johnson, Emanuel, Laurens, Burke, and Richmond Counties, Ga., which are located on and north of U. S. Highway 80, to points in Florida.

HEARING: May 7, 1957, at Peachtree-Seventh Building, 50 Seventh Street NE., Atlanta, Ga., before Joint Board No. 64, or, if the Joint Board waives its right to participate, before Examiner Richard Yardley.

No. MC 116142 (Sub No. 10), filed March 13, 1957, BEVERAGE TRANSPORTATION, INC., 615 Broad Street Bank Building, Trenton, N. J. Applicant's attorney: S. Harrison Kahn, 726–34 Investment Building, Washington, D. C. For authority to operate as a *common carrier*, over irregular routes, transporting: *Beverages*, in containers, and *empty containers and other such incidental facilities* (not specified), used in transporting beverages, and *advertising material* and *premiums*, between Trenton, N. J., and points within 15 miles of Trenton, on the one hand, and, on the other, points in Kentucky, West Virginia and Ohio. Applicant is authorized to transport malt and brewed beverages from and to specified points in Pennsylvania, New Jersey, Delaware, the District of Columbia, Maryland, New York, Ohio, Michigan, and Virginia.

HEARING: May 17, 1957, at 346 Broadway, New York, N. Y., before Examiner Herbert L. Hanback.

No. MC 116142 (Sub No. 11), filed March 13, 1957, BEVERAGE TRANSPORTATION, INC., 615 Broad St. Bank Building, Trenton, N. J. Applicant's attorney: S. Harrison Kahn, 726–34 Investment Building, Washington, D. C. For authority to operate as a *common carrier*, over irregular routes, transporting: *Beverages*, in containers, and *empty containers and other such incidental facilities* (not specified), used in transporting beverages, and *advertising material* and *premiums*, between Cumberland, Md., and points in New Jersey. Applicant is authorized to transport malt and brewed beverages from and to specified points in Pennsylvania, New Jersey, Delaware, the District of Columbia, Maryland, New York, Ohio, Michigan, and Virginia.

HEARING: May 17, 1957, at 346 Broadway, New York, N. Y., before Examiner Herbert L. Hanback.

No. MC 116444, filed February 13, 1957, OTTO F. SETTER, doing business as TRAILER TRANSPORT, 2617 East Sprague Street, Spokane, Wash. For authority to operate as a *common carrier*, over irregular routes, transporting: *Trailers*, designed to be drawn by passenger automobiles, in initial and secondary movements, in truckaway service, between points in Washington, on the one hand, and, on the other, points in the United States and the District of Columbia.

HEARING: May 7, 1957, at the Davenport Hotel, Spokane, Wash., before Examiner Frank R. Saltzman.

No. MC 116452, filed February 15, 1957, REFRIGERATED SERVICE, INC., 416 South Elizabeth, Milton, Oreg. Applicant's attorney: Hugh A. Dressel, 204 First National Bank Building, Spokane 1, Wash. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Vegetable oil products*, from Wilmington (Los Angeles County), Calif., to points in Oregon, Washington, and Idaho, and *empty containers or other such incidental facilities* (not specified) used in transporting the commodities specified in this application on return movements.

NOTE: Applicant proposes to serve points on U. S. Highways 97, 99, 30, and 10 where Vegetable Oil Products Co. of Wilmington, Calif., has an account.

HEARING: May 6, 1957, at the Davenport Hotel, Spokane, Wash., before Examiner Frank R. Saltzman.

No. MC 116464, filed February 20, 1957, LEO C. HAGG, doing business as HAGG'S TRAILER SALES, P. O. Box 183, Umatilla, Oreg. For authority to operate as a *common carrier*, over irregular routes, transporting: *House trailers*, designed to be drawn by passenger automobiles, in initial and secondary movements, in truckaway service, between points in Oregon, on the one hand, and, on the other, points in Washington, Idaho, California, Nevada, and Arizona.

HEARING: May 8, 1957, at the Davenport Hotel, Spokane, Wash., before Examiner Frank R. Saltzman.

No. MC 116469, filed February 25, 1957, T. C. FIELDLER AND D. S. WILCOX JR., doing business as ANTHRACITE TRUCKING SERVICE, 59 South Washington Street, Wilkes-Barre, Pa. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Such merchandise as is dealt in by wholesale, retail and chain grocery and food business houses*, and, in connection therewith, *equipment, materials, and supplies used in the conduct of such business*, (1) between points within the territory bounded by a line beginning at Port Jervis, N. Y. and extending in a northwesterly direction along New York Highway 97 to Hancock, N. Y., thence in a westerly direction along New York Highway 17 through Deposit, Binghamton, Owego, Waverly, Elmira, and Corning to Painted Post, N. Y., thence in a southerly direction along U. S. Highway 15 through Erwins, Presho and Lindley, N. Y. and Lawrenceville, Pa. to Tioga, Pa., thence southerly along Pennsylvania Highway 84 through Hammond, Middleburg Center, Niles Valley, Wellsboro, Morris, English Center, and Brookside, Pa. to the junction of Pennsylvania Highway 84 and U. S. Highway 220, thence in a westerly direction along U. S. Highway 220 through Jersey Shore, Avis, Lock Haven, and Flemington to the junction of U. S. Highway 220 and Pennsylvania Highway 64, thence in a southerly direction along Pennsylvania Highway 64 through Mill Hall to Nittany, Pa., thence return over Pennsylvania Highway 64 to the junction of Pennsylvania Highways 64 and 445, thence along Pennsylvania Highway 445 through Madisonburg to Millheim at the junction of Pennsylvania Highways 445 and 45, thence in a

westerly direction along Pennsylvania Highway 45 through Spring Mills and Old Fort to Boalsburg, Pa. at the junction of Pennsylvania Highway 45 and U. S. Highway 322, thence in an easterly direction along U. S. Highway 322 through Potters Mills and Yeagertown to Lewistown, Pa., thence along U. S. Highway 22–322 through Mifflintown, Millerstown, Amity Hall, Dauphin and Rockville, Pa. to the junction U. S. Highway 22–322 and Pennsylvania Highway 39, thence along Pennsylvania Highway 39 through Linglestown and Manadahill, Pa., to the junction Pennsylvania Highway 39 and U. S. Highway 22, thence in an easterly direction along U. S. Highway 22 through Bethel, Shartlesville and Hamburg, Pa. to junction U. S. Highway 22 and Pennsylvania Highway 29, thence in a northerly direction along Pennsylvania Highway 29 through Walbert, Schnecksville, Slatington, Palmerton and Lehighton, Pa. and the junction Pennsylvania Highway 29 and U. S. Highway 209, thence along U. S. Highway 209 in a northeasterly direction through Forest Inn, Kresgeville, Brodheadsville, Stroudsburg, East Stroudsburg, Marshalls Creek, Dingmans Ferry, Milford and Matamoras, Pa. to Port Jervis, N. Y., the point of beginning, including the points named. (2) between points in the above-specified territory, on the one hand, and, on the other, New York, N. Y., Newark, Jersey City, Camden, and Trenton, N. J. and Philadelphia, Pa.; *frozen fruits, vegetables, poultry, seafoods, ice cream,* and *unprocessed agricultural commodities* when transported on the same vehicle at the same time with non-exempt commodities, from points in New York, New Jersey Pennsylvania, and Delaware to points in the above-specified territory.

HEARING: May 1, 1957, at the Penn Sherwood Hotel, 3900 Chestnut Street, Philadelphia, Pa., before Examiner Lacy W. Hinely.

No. MC 116475, (Correction) filed February 25, 1957, published issue of March 20, 1957, CLYDE S. ESTY and CLYDE S. ESTY, JR., a partnership, doing business as CLYDE S. ESTY & SON, 265 Forest Street, Westbrook, Maine. Applicant's attorney: M. E. Kelley, 84 State Street, Boston 9, Mass.

NOTE: Previous publication indicated place of hearing as Portland, Oreg., in error. The correct place of hearing is Portland, Maine.

No. MC 116494, filed March 4, 1957, MILWOOD EUBANKS, Pelham Road, Camilla, Ga. Applicant's attorney: Robert Culpepper, Jr., Camilla, Ga. For authority to operate as a *common carrier,* over irregular routes, transporting: *fence posts, creosoted lumber* suitable for piling, decking, etc., *poles,* bare and creosoted, and *cross arms* from Camilla, Ga., to points in Florida, Alabama, Tennessee, North Carolina, and South Carolina.

HEARING: May 6, 1957, at Peachtree-Seventh Building, 50 Seventh Street NE., Atlanta, Ga., before Examiner Richard Yardley.

No. MC 116512, filed March 13, 1957, CHARLES R. HAYES, 53 Summer Street, St. Johnsbury, Vt. For authority to operate as a *contract carrier,* over irregular routes, transporting: *Petroleum* and *petroleum products,* in bulk, in tank vehicles, from Portland, Maine, to St. Johnsbury, Vt.

HEARING: May 8, 1957, at the Washington County Court House, Montpelier, Vt., before Joint Board No. 133, or, if the Joint Board waives its right to participate, before Examiner Herbert L. Hanback.

No. MC 116517, filed March 12, 1957, CYRIL P. MICHAUD, doing business as PORTLAND AIR FREIGHT, 19 Noyes, Portland, Maine. Applicant's attorney: Milton E. Diehl, 1383 National Press Building, Washington, D. C. For authority to operate as a *common carrier,* over regular routes, transporting: *Commodities,* moving over air lines, when due to size, length, etc., and adverse weather conditions, such freight cannot be handled over local air lines, between the Site of Portland, Maine Airport and Site of Logan International Airport, Boston, Mass., over U. S. Highway 1 and/or the Maine Turnpike, serving no intermediate points.

HEARING: May 14, 1957, at the Federal Building, Portland, Maine, before Joint Board No. 69, or, if the Joint Board waives its right to participate, before Examiner Herbert L. Hanback.

MOTOR CARRIERS OF PASSENGERS

No. MC 1002 (Sub No. 12) (Correction), filed March 6, 1957, ASBURY PARK-NEW YORK TRANSIT CORPORATION, 275 Broadway, Keyport, N. J. Applicant's attorney: Edward W. Currie, 123 Main Street, Matawan, N. J. For authority to operate as a *common carrier,* over irregular routes, transporting: *Passengers and their baggage,* in the same vehicle with passengers, in special round-trip operations, during the racing season, at respective tracks, beginning and ending at Keyport, Red Bank, Fort Monmouth, Oceanport, Long Branch, Asbury Park, Bradley Beach, Belmar, Freehold, Manasquan and Point Pleasant, N. J., and extending to Delaware Park Race Track at Stanton, Del., Pimlico Race Track at Baltimore, Md., Bowie Race Track at Bowie, Md., and Laurel Race Track at Laurel, Md. Applicant is authorized to conduct operations in New Jersey, New York, Virginia, Pennsylvania, and the District of Columbia.

HEARING: Remains as assigned April 29, 1957, at the New Jersey Board of Public Utility Commissioners State Office Building, Raymond Boulevard, Newark, N. J., before Joint Board No. 283.

No. MC 116212 (Sub No. 1), filed March 13, 1957, HARRY LEE EYRE, JR., Woodbine, Md. Applicant's attorney: Milton E. Diehl, 1383 National Press Building, Washington 4, D. C. For authority to operate as a *common carrier,* over irregular routes, transporting: *Passengers and their baggage* (including musical instruments when accompanied by owners, in the same vehicle with passengers, in charter or special operations, beginning and ending at points in Howard County, Md., except points within ten (10) miles of Woodbine, Md., and extending to points in Pennsylvania and the District of Columbia.

HEARING: April 30, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Joint Board No. 200.

No. MC 116333 (Sub No. 2), filed March 13, 1957, CHARLES H. MORSE, doing business as MORSE'S BUS SERVICE, 52 Merrill Street, Plymouth, N. H. Applicant's attorney: William F. Batchelder, 66 Main Street, Plymouth, N. H. For authority to operate as a *common carrier,* over irregular routes, transporting: *Passengers* and *baggage,* in the same vehicle with passengers, and in separate vehicles, in charter operations, beginning and ending at Plymouth, N. H., and points within 25 miles thereof, and extending to points in Maine, Vermont, Massachusetts, Connecticut, Rhode Island, New York, Pennsylvania, New Jersey, Delaware, Maryland, and the District of Columbia.

HEARING: May 10, 1957, at the New Hampshire Public Service Commission, Concord, N. H., before Examiner Herbert L. Hanback.

APPLICATIONS IN WHICH HANDLING WITHOUT ORAL HEARING IS REQUESTED

MOTOR CARRIERS OF PROPERTY

No. MC 3252 (Sub No. 16), filed March 12, 1957, PAUL MERRILL, doing business as MERRILL TRANSPORT CO., 1037 Forest Avenue, Portland, Maine. Applicant's attorney: Francis E. Barrett, 7 Water Street, Boston 9, Mass. For authority to operate as a *common carrier,* over irregular routes, transporting: *Petroleum products,* in bulk, in tank vehicles, from Boston, Mass., and East Providence, R. I., to the Summit of Mount Washington, N. H. Applicant is authorized to transport similar commodities in Massachusetts, Maine, New Hampshire, and Rhode Island.

No. MC 38791 (Sub No. 19), (Correction) published in the November 8, 1956, issue, filed October 18, 1956, TUOHY TRUCKING CORPORATION, 733 Highway 17, Carlstadt, N. J. Applicant's attorney: Joseph W. McGovern, 14 Wall Street, New York 5, N. Y. For authority to operate as a *contract carrier,* over irregular routes, transporting: *Such merchandise as is dealt in by wholesale, retail and chain grocery and food business houses,* between New York, N. Y., on the one hand, and, on the other, points in Burlington and Ocean Counties, N. J., under special and individual contracts or agreements with persons (as defined in section 203 (a) of the Interstate Commerce Act) who operate wholesale or retail establishments, the primary business of which is the sale and distribution of food, and *empty containers or other such incidental facilities* (not specified) used in transporting the commodities specified in this application, on return. Applicant is authorized to conduct operations in New York, Connecticut, New Jersey, and Pennsylvania.

No. MC 52579 (Sub No. 30), filed March 14, 1957, GILBERT CARRIER CORP., 645 West 40th Street, New York 18, N. Y. Applicant's representative: Harris J. Klein, 280 Broadway, New York 7, N. Y. For authority to operate as a *common carrier,* over irregular routes, transporting: *Garments and wearing apparel on hangers,* and *hangers,* (1) be-

tween New York, N. Y., and Kearny, N. J.; and (2) between Kearny, N. J., and Cleveland, Ohio, and Detroit, Mich. RESTRICTION: Applied-for authority to be limited in all instances to the transportation of traffic moving between Kearny, N. J., and Cleveland, Ohio, and Detroit, Mich., in applicant's trailers, on rail cars, in substituted rail for motor service; and the applied-for authority and authority presently held by applicant on the same commodities between New York, N. Y., and Cleveland, Ohio, and Detroit, Mich., to be construed as comprising a single operating right which shall be severable by sale or otherwise; and, further, Kearny, N. J., is to be served solely for the purpose of pickup and delivering laden semi-trailers at the yards of the Pennsylvania Railroad in substituted service. Applicant is authorized to transport similar commodities throughout the United States.

No. MC 66562 (Sub No. 1335), filed January 24, 1957, RAILWAY EXPRESS AGENCY, INCORPORATED, 219 East 42d Street, New York 17, N. Y. Applicant's attorney: William H. Marx, 219 East 42d Street, New York 17, N. Y. For authority to operate as a *common carrier*, transporting: *General commodities*, including *Class A and B explosives*, moving in express service, serving Montrose, Pa., as an off-route point in connection with applicant's authorized regular route operations between Wilkes-Barre, Pa., and Sayre, Pa., as reflected in Certificate No. MC 66562 (Sub No. 215). Applicant is authorized to conduct operations throughout the United States.

NOTE: Applicant states that in the serving of Montrose, Pa., the following route will be used: From Wilkes-Barre, Pa., over unnumbered highway to Pittston, Pa., thence over unnumbered highway to Ransom, Pa., thence over unnumbered highway to Falls, Pa., thence over Pennsylvania Highway 92 to Tunkhannock, Pa., thence over Combined U. S. Highways 6 and 309 to Towanda, Pa.; also over U. S. Highway 106 to Montrose, Pa., thence over Pennsylvania Highway 29 to Tunkhannock, thence over Pennsylvania Highway 92 to Pittston, and return to Wilkes-Barre, Pa., serving the intermediate points of Pittston, Ransom, Tunkhannock, Meshoppen, Laceyville, Wyalusing, Wysox, Towanda, and Montrose, Pa.

RESTRICTIONS: Service herein authorized is subject to the following conditions: (a) The service to be performed by said carrier shall be limited to service which is auxiliary to, or supplemental of, railway express service; (b) Shipments transported by said carrier shall be limited to those moving on a through bill of lading, or express receipt, covering, in addition to a motor carrier movement by said carrier an immediately prior or immediately subsequent movement by rail; and (c) Such further specific conditions as the Commission, in the future, may find necessary to impose in order to restrict said carrier's operation to service which is auxiliary to, or supplemental of, railway express service.

No. MC 66562 (Sub No. 1344), filed February 25, 1957, RAILWAY EXPRESS AGENCY, INCORPORATED, 219 East 42d Street, New York 17, N. Y. Applicant's attorney: William H. Marx, Law Department, Railway Express Agency, Incorporated (same address as applicant). For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities, including Class A and B explosives*, moving in express service, between Clarksburg, W. Va., and Buckhannon, W. Va., from Clarksburg over West Virginia Highway 20 to Buckhannon, and return over the same route, serving no intermediate points, as an alternate route for operating convenience only, in connection with applicant's authorized regular route operations between Clarksburg and Buckhannon, W. Va. RESTRICTION: The service proposed above is subject to the following conditions: The service to be performed by applicant shall be limited to that which is auxiliary to, or supplemental of, railway or air, express service. Shipments transported by applicant shall be limited to those moving on a through bill of lading, or express receipt, covering in addition to a motor carrier movement by applicant, an immediately prior, or immediately subsequent, movement by railroad or by aircraft. Such further specific conditions as the Commission, in the future, may find it necessary to impose in order to restrict applicant's operations to service which is auxiliary to, or supplemental of, railway or air express service. Applicant is authorized to conduct operations throughout the United States.

No. MC 66562 (Sub No. 1350), filed March 7, 1957, RAILWAY EXPRESS AGENCY, INCORPORATED, 219 East 42d St., New York 17, N. Y. Applicant's attorney: James E. Thomas, 1220 The Citizens and Southern National Bank Building, Atlanta 3, Ga. For authority to operate as a *common carrier*, over a regular route, transporting: *General commodities, including Class A and B explosives*, moving in express service, between Hendersonville, N. C., and Rosman, N. C.; from Hendersonville over U. S. Highway 64 to Rosman, and return over the same route, serving the intermediate points of Pisgah Forest and Brevard, N. C. RESTRICTIONS: The service to be performed by said carrier shall be limited to service which is auxiliary to or supplemental of express service. Shipments transported by said carrier shall be limited to those moving on a through bill of lading, or express receipt, covering in addition to a movement by said carrier, an immediately prior or immediately subsequent movement by rail or air. Such further specific conditions as the Commission, in the future, may find it necessary to impose in order to restrict said carrier's operations to service which is auxiliary to, or supplemental of, express service. Applicant is authorized to conduct operations throughout the United States.

NOTE: Applicant states interchange of express traffic to and from rail and air service will be made at Hendersonville, N. C.

No. MC 109324 (Sub No. 11), filed February 20, 1957, BEN F. GARRISON, doing business as GARRISON MOTOR FREIGHT, Harrison, Ark. Applicant's attorney: Louis Tarlowski, Rector Building, Little Rock, Ark. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and commodities requiring special equipment, between Harrison, Ark. and Lead Hill, Ark. over Arkansas Highway 7, serving all intermediate points. Applicant is authorized to conduct operations in Missouri and Arkansas.

No. MC 111560 (Sub No. 2), filed March 11, 1957, ALBERT DEBRACCIO, 263 South Munroe Road, Tallmadge, Ohio. Applicant's representative: John R. Meeks, 607 Copley Road, Akron, Ohio. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Aluminum storm windows and doors*, and in connection therewith, *moldings and parts, glass, screen wire, plastic and rubber items* used or useful in the assembly of aluminum doors and windows, from Sugar Creek, Ohio to points in Illinois, Indiana, Ohio, Iowa, Kentucky, Maryland, Massachusetts, Michigan, Minnesota, Missouri, Nebraska, New York, Pennsylvania, Virginia, West Virginia and the District of Columbia; and *scrap aluminum* from the above-described destination points to Sugar Creek, Ohio. Applicant is authorized to transport above-specified commodities in Massachusetts, Michigan, Illinois, Indiana, Missouri, Minnesota, Iowa, Kentucky, Pennsylvania, Ohio, New York, Nebraska, West Virginia, Virginia, Maryland, and the District of Columbia.

No. MC 114194 (Sub No. 6), filed March 13, 1957, KREIDER TRUCK SERVICE, INC., 8003 Collinsville Road, East St. Louis, Ill. Applicant's attorney: Ernest A. Brooks II, 1310 Ambassador Building, St. Louis 1, Mo. For authority to operate as a *common carrier*, over irregular routes, transporting: *Pre-cast*, and *pre-stressed concrete products* requiring the use of flatbed equipment, except such commodities which because of size or weight require special equipment or special handling, from points in Nameoki Township, Madison County, Ill., to points in Missouri, Iowa, Indiana, and Kentucky.

No. MC 116106 (Sub No. 2), filed March 11, 1957, NEIL A. SMITH AND DONALD W. SMITH, doing business as SMITH BROTHERS, R. R. #1, Raglan P. O. Columbus, Ontario, Canada. Applicant's attorney: S. Harrison Kahn, 726–34 Investment Building, Washington, D. C. For authority to operate as a *common carrier*, over irregular routes, transporting: *Livestock, other than ordinary, including ponies*, but excepting mules and horses, between ports of entry on the International boundary between the United States and Canada at or near Ogdensburg, Alexandria Bay, Niagara Falls, and Buffalo, N. Y., and Detroit and Port Huron, Mich., on the one hand, and, on the other, points in New Hampshire, Rhode Island, Delaware, North Carolina, South Carolina, Georgia, Florida, and Kentucky, restricted to shipments originating at points in Canada and destined to points in the United States, or originating at points in the United States and destined to points in Canada.

No. MC 116109 (Sub No. 2), filed February 8, 1957, BART J. SOLOMON, doing business as KANSAS CITY TOW SERV-

ICE, 31 West 31st Street, Kansas City, Mo. For authority to operate as a *common carrier*, over irregular routes, transporting: *Motor vehicles*, by wrecker truck, to replace a wrecked or disabled bus, truck or passenger car at point of wreck or disablement, from points in the Kansas City, Mo.-Kansas City, Kans., Commercial Zone to points in Kansas and Missouri. Applicant is authorized to transport similar commodities in Kansas and Missouri.

No. MC 116374, filed January 10, 1957, JAMES L. SPOONER, doing business as WHITE LINE TRUCKING CO., 207 North Second West, Kelso, Wash. Applicant's representative: John M. Hickson, Failing Building, Portland, Oreg. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Lumber*, between Rainier, Oreg., and points in Whatcom, Skagit, Snohomish, King, Pierce, Skamania, Clark, Cowlitz, Wahkiakum, Lewis, Pacific, Thurston, Mason, Grays Harbor, Kitsap, Jefferson, and Clallam Counties, Wash., west of the summit of the Cascade Mountains.

No. MC 116484, filed February 28, 1957, MAX A. WIDEBROOK, doing business as BROOKWOOD GARAGE, 4225 Antioch Street, Kansas City 16, Mo. For authority to operate as a *common carrier*, over irregular routes, transporting: *Wrecked, disabled or repossessed motor vehicles*, in truckaway (wrecker towaway) service, *including authority to transport a replacement vehicle* (tractor) to point of wreck or disablement, between Kansas City, Mo., on the one hand, and, on the other, points in Illinois, Iowa, Kansas, and Oklahoma.

MOTOR CARRIERS OF PASSENGERS

No. MC 1501 (Sub No. 132), filed February 14, 1957, THE GREYHOUND CORPORATION, 2600 Board of Trade Building, Chicago 4, Ill. Applicant's attorney: Linwood C. Major, Jr., 2001 Massachusetts Avenue NW., Washington 6, D. C. For authority to operate as a *common carrier*, over a regular route, transporting: *Passengers and their baggage*, and *express, mail*, and *newspapers*, in the same vehicle with passengers, Between Meriden, Conn., and New Britain, Conn., from Meriden over Connecticut Highway 71 to junction Connecticut Highway 71-A, thence over Connecticut Highway 71-A to New Britain, and return over the same route, serving all intermediate points. Applicant is authorized to conduct operations throughout the United States.

NOTE: By the instant application applicant seeks authority to abandon its operations over certain portions of its present route between Meriden, Conn., and New Britain, Conn., and in lieu thereof be granted authority authorizing and permitting it to operate over the new route herein applied for between the same two terminal points. Accordingly, the sole purpose of the instant application is to permit applicant to change its present route between Meriden, Conn., and New Britain, Conn., in order that schedules which it is now operating between New York and Boston with scenicruiser equipment may serve both of those points.

No. MC 114532 (Sub No. 2), filed December 31, 1956, P. W. FLETCHER, doing business as IOWA CITY-CEDAR RAPIDS BUS LINE, 1732 East Avenue NE., Cedar Rapids, Iowa. Applicant's representative: Stephen Robinson, 1020 Savings and Loan Building, Des Moines 9, Iowa. For authority to operate as a *common carrier*, over regular routes, transporting: *Passengers* and *their baggage*, and *express* and *newspapers*, in the same vehicle with passengers, between Cedar Rapids, Iowa and South English, Iowa, from Cedar Rapids southeasterly on newly constructed U. S. Highway 218 to junction of Iowa Highway 84, thence over Iowa Highway 84 to Cedar Rapids airport, returning over Iowa Highway 84 to U. S. Highway 218, thence continuing on U. S. Highway 218 to Iowa City, thence southwesterly on Iowa Highway 1 to the junction of Iowa Highway 22, thence west on Iowa Highway 22 to South English, Iowa, returning over the same route serving the intermediate and off-route points of Cedar Rapids airport, Swisher, North Liberty, Oakdale, Iowa City, Kalona, Wellman, and Kinross, Iowa. Applicant is authorized to conduct similar operations in Iowa.

APPLICATIONS FOR CERTIFICATES OR PERMITS WHICH ARE TO BE PROCESSED CONCURRENTLY WITH APPLICATIONS UNDER SECTION 5, GOVERNED BY SPECIAL RULE 1.240 TO THE EXTENT APPLICABLE

No. MC 67111 (Sub No. 7), filed December 26, 1956, KAIN'S MOTOR SERVICE CORP., West End of Bates Street, Logansport, Ind. Applicant's attorney: Ferdinand Born, 706–8 Chamber of Commerce Bldg., Indianapolis, Ind. For authority to operate as a *common carrier*, over irregular routes, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, between Elwood, Ind., and points within 15 miles of Elwood, Ind. Applicant is authorized to transport similar commodities in Illinois and Indiana.

NOTE: This application is filed to obtain a Certificate of Public Convenience and Necessity from this Commission authorizing continuance of interstate operations under the second proviso of section 206 (a) (1) of the Interstate Commerce Act, supported by intrastate certificate on file with this Commission, and is directly related to proceeding in MC–F 6482, published under section 5 applications issue of FEDERAL REGISTER January 9, 1957.

No. MC 80413 (Sub No. 6), filed February 11, 1957, McKAY AND MacLEOD CORP., 9 East Race Street, Salamanca, N. Y. Applicant's representative: Bert Collins, 140 Cedar Street, New York 6, N. Y. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, (1) between Niagara Falls, N. Y. and Salamanca, N. Y., from Niagara Falls over New York Highways 324 or 384 to Buffalo, thence over New York Highways 18 or 17 (Or over U. S. Highway 62 to Hamburg, thence over U. S. Highway 219) to Salamanca, and return over the same routes, serving the intermediate points of Ashford, Big Tree Blasdell, Boston, Buffalo, Cattaraugus, Collins, Dayton, E. Ashford, Eden, Eden Valley, Elkdale, Ellicottville, Gowanda, Great Valley, Hamburg, Iroquois, Kenmore, Lackawanna, Lawtons, Little Valley, N. Boston, N. Collins, Riceville, Springville, Wesley, and West Valley, N. Y.; (2) between Jamestown, N. Y. and New York, N. Y., from Jamestown over New York Highway 17 to Elmira (Also over New York Highway 17 to junction New York Highway 17E, thence over New York Highway 17E to Elmira), thence over New York Highway 17 to Binghamton (Also over New York Highway 17 to junction New York Highway 17C, thence over New York Highway 17C to Binghamton), thence over New York Highway 17 to Bloomingburg, thence over New York Highway 17K to Newburgh, thence across the Hudson River to Beacon, thence over New York Highway 9D to junction New York Highway 9, thence over New York Highway 9 to New York, and return over the same routes, serving the intermediate points of Addison, Allegany, Allentown, Andover, Appalachin, Barton, Big Flats, Binghamton, Bolivar, Campville, Carrollton, Ceres, Chemung, Corning, E. Corning, E. Randolph, Elmira, Elmira Heights, Elm Valley, Endwell, Endicott, Erwins, Falconer, Gibson, Greenwood, Horseheads, Jasper, Johnson City, Kennedy, Kill Buck, Levant, Little Genesee, Lowman, Olean, Owego, Painted Post, Portville, Randolph, Red House, Salamanca, Sanford, Smithboro, Steamburg, Tioga Center, Vandalia, Vestal, Waterboro, Waverly, Wellsville, and Weston Mills, N. Y. and the junctions of New York Highways 17 and 241 and New York Highways 17 and 21; and the off-route points of Adrian, Akron, Alden, Alfred, Allen, Alma, Angola, Armor, Athol Springs, Atlanta, Avoca, Bishopville, Black Creek, Blossom, Borden, Bradford, Cadiz, Cameron, Cameron Mills, Campbell, Caton, Centerville, Cheektowaga, Clarence, Clarence Center, Cohocton, Colden, Cold Springs, Collins Center, Conewango Valley, Cottage, Crittenden, Dansville, Delevan, Depew, Derby, E. Concord, E. Otto, Ebenezer, Eddyville, Eggertsville, Elma, Elton, Farnham, Fillmore, Five Mile Point, Freedom, Freeman, Gardenville, Getzville, Glenwood, Grand Island, Hallsport, Hammondsport, Haskinsville, Houghton, Hume, Humphrey, Ingleside, Keuka, Knapp Creek, Lake View, Lancaster, Langford, Limestone, Lindley, Lockport, Millersport, Maples, Marilla, Napoli, New Albion, New Oregon, Nile, N. Cohocton, N. Cuba, N. Evans, Obi, Otto, Perkinsville, Perrysburg, Phillips Creek, Prattsburg, Presto, Pulteney, Rathbone, Rexville, Rheims, Richburg, Rockville, Rossburg, Sardinia, Snyder, S. Dayton, Spring Brook, Swain, Swormville, Thurston, Town Line, Town of Tonawanda, Troupsburg, Urbana, Wallace, Wayland, W. Clarksville, W. Falls, Wheeler, Whitesville, and Williamsville, N. Y.; Service is authorized between Binghamton, N. Y. and New York, N. Y., without service to, from or between any other points located on said routes; (3) between Buffalo, N. Y. and Olean, N. Y., from Buffalo over

U. S. Highway 62 or U. S. Highway 20 (alternate) to East Aurora, thence over New York Highway 16 to Olean, and return over the same route, serving the intermediate points of Blasdell, Chafee, E. Aurora, Franklinville, Hinsdale, Holland, Ischua, Lackawanna, Lime Lake, Machias, Machias Junction, Orchard Park, Protection, S. Wales, and Yorkshire, N. Y. and the junctions of New York Highways 16 and 39 and New York Highways 16 and 408; (4) between the junction of New York Highways 16 and 39, and Wellsville, N. Y., from the junction of New York Highways 16 and 39 over New York Highway 39 to Arcade, thence over New York Highway 98 to junction New York Highway 243, thence over New York Highway 243 to Caneadea, thence over New York Highway 19 to Wellsville, and return over the same route, serving the intermediate points of Arcade, Belfast, Belmont, Caneadea, Crystal Lake, Fairview, Oramel, Rushford, Sandusky, Scio and Wellsville, N. Y.; (5) between the junction of New York Highways 16 and 408, and Andover, N. Y., from the junction of New York Highways 16 and 408 over New York Highway 408 to Garwoods, thence over New York Highway 70 to Arkport, thence over New York Highway 36 toAndover, and return over the same route, serving the intermediate points of Alfred Station, Almond, Angelica, Arkport, Belvidere, Bennetts, Birdsall, Burns, Canaseraga Center, Cuba, Friendship, Garwoods, Hornell, N. Hornell, Scholes, and Tip Top, N. Y.; (6) between Dayton, N. Y. and the junction of New York Highways, 241 and 17, from Dayton over U. S. Highway 62 to Conewango, thence over New York Highway 241 to junction of New York Highway 241 and 17, and return over the same route, serving the intermediate points of Conewango, Leon and Markhams, N. Y.; (7) between Hornell, N. Y. and Painted Post, N. Y., from Hornell over New York Highway 70 to junction with U. S. Highway 15, thence over U. S. Highway 15 to Painted Post, and return over the same routes, serving the intermediate points of Bath, Big Creek, Coopers Plains, Curtis, Howard, Kanona, N. Hornell and Savona, N. Y.; (8) between Hornell, N. Y. and the junction of New York Highways 21 and 17, from Hornell over New York Highway 21 to junction of New York Highways 21 and 17, and return over the same route, serving the intermediate points of Canisteo and S. Canisteo, N. Y.

NOTE: This matter is directly related to MC–F 6510 published FEDERAL REGISTER issue of February 27, 1957. Applicant is authorized to transport similar commodities in New York and New Jersey.

No. MC 97183 (Sub No. 10), filed February 14, 1957, MARION TRUCKING COMPANY, INC., 1620 Factory Avenue, Marion, Ind. Applicant's attorneys: Robert C. Smith, 512 Illinois Building, Indianapolis 4, Ind., and James E. Wilson, Continental Building, 14th at K NW., Washington, D. C. For authority to operate as a *common carrier*, over regular and irregular routes, transporting: *General commodities, REGULAR ROUTES*, (1) Between Marion, Ind., and South Bend, Ind., from Marion over Indiana Highway 18 to junction Indiana Highway 21, thence over Indiana Highway 21 to junction U. S. Highway 31, thence over U. S. Highway 31 to South Bend, and return over the same route, serving all intermediate points; (2) Between Marion, Ind., and Fort Wayne, Ind., from Marion over Indiana Highway 9 to Huntington, Ind., thence over U. S. Highway 24 to Fort Wayne, and return over the same route, serving all intermediate points; (3) Between Marion, Ind,. and Evansville, Ind., from Marion over Indiana Highway 9 to junction Indiana Highway 67, thence over Indiana Highway 67 to Indianapolis, Ind., thence over U. S. Highway 40 to junction U. S. Highway 41, thence over Indiana Highway 41 to Evansville, and return over the same route, serving all intermediate points; (4) Between Marion, Ind., and Richmond, Ind., from Marion over U. S. Highway 21 to junction U. S. Highway 35, thence over U. S. Highway 35 to Richmond, and return over the same route, serving all intermediate points; (5) Between Marion, Ind., and Lafayette, Ind., from Marion over U. S. Highway 9 to junction U. S. Highway 35, thence over U. S. Highway 35 to junction U. S. Highway 31, thence over U. S. Highway 31 to junction Indiana Highway 26, thence over Indiana Highway 26 to Lafayette, and return over the same route, serving all intermediate points; (6) Between Marion, Ind., and Logansport, Ind., (a) from Marion over Indiana Highway 18 to junction Indiana Highway 21, thence over Indiana Highway 21 to junction U. S. Highway 24, thence over U. S. Highway 24 to Logansport; also between Peru, Ind., and Wabash, Ind., over U. S. Highway 24; also between Marion, Ind., and Wabash, Ind., over Indiana Highway 15; also between Logansport, Ind., and Gary, Ind., over Indiana Highway 29 to junction U. S. Highway 30, thence over U. S. Highway 30 to junction Indiana Highway 130, thence over Indiana Highway 130 to junction U. S. Highway 6, thence over U. S. Highway 6 to Gary, and return over the same routes, serving all intermediate points; (b) from Muncie, Ind., to Westfield, Ind., over Indiana Highway 32, serving all intermediate points; (c) from Gas City, Ind., to Portland, Ind., over Indiana Highway 22 to junction Indiana Highway 26, thence over Indiana Highway 26 to Portland, and return over the same route, serving all intermediate points; (d) from Marion, Ind., to Decatur, Ind., over Indiana Highway 18 to junction U. S. Highway 27, thence north over U. S. Highway 27 to Decatur, and return over the same route, serving all intermediate points; (e) from Warren, Ind., to junction Indiana Highways 9 and 218, over Indiana Highway 218, serving all intermediate points; (f) from Muncie, Ind., to junction Indiana Highways 3 and 18, over Indiana Highway 3, serving all intermediate points; and (g) from Portland, Ind., to junction U. S. Highway 27 and Indiana Highway 18, over U. S. Highway 27, serving all intermediate points; (7) between Lafayette, Ind., and Rochester, Ind., over Indiana Highway 25, serving no intermediate points, as an alternate route for operating convenience only; (8) between junction Indiana Highways 3 and 18 and Fort Wayne, Ind., over Indiana Highway 3, serving no intermediate points, as an alternate route only; (9) between junction Indiana Highways 67 and 38 and New Castle, Ind., over Indiana Highway 38, serving all intermediate points; (10) from Indiana Highway 41 to North Terre Haute, Ind., and from North Terre Haute over unnumbered County Highways between Terre Haute, Ind., and Turkey Run, Ind., passing through and serving Bloomingdale, Orange Corner, Kingman, Sylvania, Tangier, West Union, Sand Cut, Rosedale, Jessup, Catlin, Turkey Run, Terre Haute, Marshall, Guion, Waverland, Russellville, Milligan, Browns Valley, and Byron, Ind., with the proviso that applicant shall not carry any property, originating at Terre Haute, Ind., and destined to Rockville, Ind., or from Rockville, Ind., to Terre Haute, Ind.; (11) Between Terre Haute, Rockville, Bellmore, Mansfield, and Bridgeton, Ind., as follows: from Indiana Highway 41 (Terre Haute) to North Terre Haute, thence over Vigo and Parke County Highways to Rockville, thence over Indiana Highway 36 to Bellmore, Ind., thence over Indiana Highway 59 to Mansfield, Ind., thence over Parke and Vigo County Highways through Bridgeton and Rosedale to North Terre Haute, and return over the same route, serving all intermediate points; (12) between Terre Haute, Kingman, Yeddo, Cates, Silverwood, and Tangier, Ind., over the following highways: North on U. S. Highway 41 with a jog west on county highway to Yeddo, and return over the same route to junction Indiana Highway 234, thence west on Indiana Highway 234 to junction unnumbered county highway, thence north on unnumbered county highway to Cates, Ind., thence continue on unnumbered county highway to Silverwood and Tangier, Ind., and continue on U. S. Highway 41; (13) from Kingman, Ind., over Indiana Highway 234 to junction unnumbered county highway, thence over unnumbered county highway to Crawfordsville, Ind.; also from unnumbered county highway to Wallace, Ind., and return, passing through and serving Kingman, Wallace, Alamo, Yountsville, and Crawfordsville, Ind., and intermediate points; (14) from South Bend, Ind., to Fort Wayne, Ind., over Indiana Highway 33, serving no intermediate, terminal, or off-route points, as an alternate route for operating convenience only; (15) from Plymouth, Ind., to Fort Wayne, Ind., over Indiana Highway 30, serving no intermediate, terminal, or off-route points, as an alternate route for operating convenience only; (16) between Evansville, Ind., and the building site of the Southern Indiana Gas & Electric Company, located on the Ohio River near Newburgh, Ind., from Evansville over Indiana Highway 66 to junction unnumbered County Highways, including that which is known as Darlington Road, located a short distance east of Newburgh, and thence over such unnumbered county highways to the plant site of the Southern Indiana Gas and Electric Company on the Ohio River,

and return over the same route; (17) between South Bend, Ind., and Indianapolis, Ind., over U. S. Highway 31, passing through and serving Mishawaka, South Bend, Lakeville, Lapaz, Plymouth, Argos, Rochester, Mexico, Peru, Kokomo, Indianapolis, and intermediate points; (18) between South Bend, Ind., and Muncie, Ind., from South Bend to Elkhart, Ind., over U. S. Highway 20, thence over U. S. Highway 33 to Goshen, Ind., thence over Indiana Highway 15 to Marion, Ind., thence over Indiana Highway 9 to Anderson, Ind., thence over Indiana Highway 67 to Muncie, passing through and serving South Bend, Mishawaka, Elkhart, Anderson, Muncie, and intermediate points; (19) between South Bend, Ind., and Auburn, Ind., from South Bend to Ligonier, Ind., over U. S. Highway 33, thence over U. S. Highway 6 to Waterloo, Ind., thence over U. S. Highway 27 to Auburn, Ind., thence over U. S. Highway 27 to Angola, Ind., thence over U. S. Highway 20 to South Bend, and return via Angola, passing through and serving South Bend, Mishawaka, Elkhart, Goshen, Ligonier, Kendallville, Waterloo, Auburn, Angola, Lagrange, Elkhart, South Bend, and intermediate points; (20) between South Bend, Ind., and Warsaw, Ind., from South Bend over Indiana Highway 23 to Grovertown, Ind., thence over U. S. Highway 30 to Warsaw, passing through and serving South Bend, Walkerton, Grovertown, Plymouth, Bourbon, Warsaw, and intermediate points; (21) between Grovertown, Ind., and Rochester, Ind., from Grovertown, over U. S. Highway 30 to Wanatah, Ind., thence over U. S. Highway 421 (formerly Indiana Highway 43) to junction Indiana Highway 14 and U. S. Highway 421 (formerly Indiana Highway 43), thence over Indiana Highway 14 to Rochester, passing through and serving Grovertown, Hamlet, Wanatah, LaCrosse, Medaryville, Winamac, Rochester, and intermediate points; (22) between a point at junction U. S. Highway 421 (formerly Indiana Highway 43) and Indiana Highway 10, near San Pierre, Ind., and junction Indiana Highway 10 and U. S. Highway 31, near Argos, Ind., over Indiana Highway 10, passing through and serving North Judson, Bass Lake, Argos, and intermediate points; (23) between Winamac, Ind., and junction U. S. Highways 35 and 30, over U. S. Highway 35, passing through and serving Winamac, Beardstown, Knox, and intermediate points; (24) between Walkerton, Ind., and Ligonier, Ind., from Walkerton to junction U. S. Highways 6 and 33 (formerly Indiana Highway 2), over U. S. Highway 6, thence over U. S. Highway 33 to Ligonier, and return over the same route, passing through and serving Walkerton, Bremen, Nappanee, Ligonier, and intermediate points; (25) Between the sites of the U. S. Gypsum Company, in Martin County, Ind., (a) from the Martin-Daviess County line over combined U. S. Highways 150 and 50 to junction U. S. Highway 41 at Vincennes, Ind., and return over the same route, serving no intermediate points and with service at junction U. S. Highway 41 and combined U. S. Highways 50 and 150 at Vincennes, Ind., for joinder purposes only; and (b) from the Martin-Lawrence County line over U. S. Highway 50 to junction Indiana Highway 37, thence over Indiana Highway 37 to Indianapolis, and return over the same route, serving no intermediate points;

NOTE: Routes 25 (a) and 25 (b) are to be used in connection with applicant's authorized regular routes.

(26) between the sites of the Aluminum Company of America, located in Warrick County, Ind., as follows; (a) from Evansville, Ind., over Indiana Highway 66 to the Warrick-Vanderburgh County line, and return over the same route, serving no intermediate points; and (b) from the Warrick-Spencer County line over Indiana Highway 66 to junction U. S. Highway 231, thence over U. S. Highway 231 to junction Indiana Highway 67, thence over Indiana Highway 67 to Worthington, Ind., and return over the same route, serving no intermediate points, and serving junction Indiana Highway 67 and U. S. Highway 231 at Worthington, Ind., for joinder purposes only;

NOTE: Operations over Routes 26 (a) and 26 (b) are to be used in connection with applicant's authorized regular routes in Indiana.

OVER IRREGULAR ROUTES: Glass bottles, glass containers, commercial feed, fertilizer, tankage and oil and grease products, between points in Indiana; *Petroleum* and *petroleum products,* in bulk, in tank vehicles, between points in Indiana; *Malt beverages, malt beverage advertising material, empty malt beverage containers, glass, paper* and *paper products,* (1) between points in Indiana; and (2) between points in Lake County, Ind.; *General commodities,* except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, and also excepting glass bottles, glass containers, commercial feed, fertilizer, tankage, and oil and grease products, petroleum and petroleum products, in bulk, in tank vehicles, malt beverages, malt beverage advertising material, empty malt beverage containers, glass, paper, and paper products, (1) between Fort Wayne, Ind., on the one hand, and, on the other, points within ten miles of Fort Wayne, Ind., including Baer Field, but excluding service to or from Casad Depot and New Haven, Ind.; (2) between points in Marion County, Ind., as off-route points, as an extension of applicant's authorized regular route operations; (3) between the corporate limits of Marion, Ind., and points in Indiana within five miles thereof; (4) between the corporate limits of Evansville, Ind., and points in Indiana within five miles thereof; (5) between the corporate limits of South Bend, Ind., and points in Indiana within five miles thereof, except that no service shall be rendered to the cities of Notre Dame, Mishawaka, St. Marys, Osceola and Roseland, Ind.; (6) between the corporate limits of Lafayette, Ind., and points in Indiana within five miles thereof; (7) between the corporate limits of Terre Haute, Ind., and points in Indiana within five miles thereof; (8) between the corporate limits of Muncie, Ind., and points in Indiana within five miles thereof; (9) between the corporate limits of Richmond, Ind., and points in Indiana within five miles thereof, except that there shall be no service rendered to the points of Centerville or Boston, Ind.; (10) between the corporate limits of New Castle, Ind., and points in Indiana within five miles thereof, except that there shall be no service rendered to the point of Mt. Summit, Ind.; (11) between the corporate limits of Vincennes, Ind., and points in Indiana within five miles thereof; (12) between the corporate limits of Anderson, Ind., and points in Indiana within five miles thereof; (13) between the corporate limits of Alexandria, Ind., and points in Indiana within five miles thereof; and (14) between the corporate limits of Brazil, Logansport, Peru, Huntington, Rochester, Plymouth, and Wabash, Ind., and points in Indiana within five miles of each, except that there shall be no service to the point of Lagro, Ind.; *Cattle, farm products, feed, fertilizer, farm machinery, and supplies; building materials, and supplies,* and *machinery,* (1) between Cambridge City, Ind., and points within fifteen miles thereof, and points in that part of Indiana bounded on the north by U. S. Highway 24, on the west by U. S. Highway 31, on the south by the Indiana-Kentucky State line, and on the east by the Indiana-Ohio State line; (2) between Crawfordsville, Ind., and points in Indiana within three miles thereof; (3) between Angola, Auburn, Decatur, Elkhart, Goshen, Hartford City, Kendallville, Kokomo, Ligonier, Mishawaka, Portland, Valparaiso, Warsaw, and Waterloo, Ind., and points in Indiana within five miles of each; and (4) between the corporate limits of Gary, Ind., and points within ten miles of Gary, provided that no operations shall be conducted between points in Porter County within ten miles of the corporate limits of Gary, Ind., on the one hand, and, on the other, points in Lake County, Ind.

NOTE: Where the radial territory sought to be served by applicant is contiguous to other radial territory sought, no operation shall be conducted between any two points, both of which lie in such contiguous radial territory except as otherwise authorized.

ALTERNATE ROUTES FOR OPERATING CONVENIENCE ONLY: (1) between Evansville, Ind., and Marion, Ind., (a) from Evansville over U. S. Highway 41 to junction Indiana Highway 57, thence over Indiana Highway 57 to junction Indiana Highway 67, thence over Indiana Highway 67 to junction Indiana Highway 39, thence over Indiana Highway 39 to junction Indiana Highway 37, thence over Indiana Highway 37 to Marion, and return over the same route, serving no intermediate points; (b) from Indianapolis, Ind., over U. S. Highway 31 to Peru, Ind., serving no intermediate points; (c) from Plymouth, Ind., over U. S. Highway 30 to junction U. S. Highway 35, serving no intermediate points; (d) from Indianapolis, Ind., over U. S. Highway 52 to Lafayette, Ind., serving no intermediate points; (e) from Logansport, Ind., over U. S. Highway 35 to Kokomo, Ind., serving no intermediate

points; (f) from Vincennes, Ind., over U. S. Highway 67 to Indianapolis, Ind., serving no intermediate points.

NOTE: The above six alternate routes are restricted to use as routes for operating convenience only and, further, carrier is restricted from using any of the routes as alternate routes for operating convenience in rendering service between Logansport and Kokomo, between Logansport and Peru, and Logansport and Lafayette.

(2) between Gary, Ind., and Terre Haute, Ind., from Gary over U. S. Highway 12 to junction U. S. Highway 41, thence over U. S. Highway 41 to Terre Haute, and return over the same route, serving no intermediate, terminal, or off-route points, as an alternate route for operating convenience only; (3) between Gary, Ind., and Lafayette, Ind., from Gary over U. S. Highway 12 to junction U. S. Highway 41, thence over U. S. Highway 41 to junction U. S. Highway 52, thence over U. S. Highway 52 to Lafayette, and return over the same route, serving no intermediate, terminal, or off-route points, as an alternate route for operating convenience only; (4) between Wabash, Ind., and Huntington, Ind., over U. S. Highway 24, serving no intermediate, terminal, or off-route points, as an alternate route for operating convenience only; (5) between Indianapolis, Ind., and Richmond, Ind., over U. S. Highway 40, serving no intermediate, terminal, or off-route points, as an alternate route for operating convenience only; (6) between Lafayette, Ind., and junction Indiana Highways 43 and 67, over Indiana Highway 43, serving no terminal, intermediate, or off-route points, as an alternate route for operating convenience only; (7) between Gary, Ind., and Valparaiso, Ind., from Gary over Indiana Highway 53 to junction U. S. Highway 30, thence over U. S. Highway 30 to Valparaiso, and return over the same route, serving no intermediate, terminal, or off-route points, as an alternate route for operating convenience only; (8) between Gary, Ind., and South Bend, Ind., from Gary over U. S. Highway 20 to junction Indiana Highway 2, thence over Indiana Highway 2 to South Bend, and return over the same route, serving no intermediate, terminal, or off-route points, as an alternate route for operating convenience only; (9) between junction U. S. Highway 6 and Indiana Highway 130 and Walkerton, Ind., over U. S. Highway 6, serving no intermediate, terminal, or off-route points, as an alternate route for operating convenience only; and (10) between junction Indiana Highway 14 and U. S. Highway 421 and Lafayette, Ind., from junction Indiana Highway 14 and U. S. Highway 421 to Reynolds, Ind., thence over Indiana Highway 43 to Lafayette, and return over the same route, serving no intermediate, terminal, or off-route points, as an alternate route for operating convenience only.

NOTE: This application is filed to obtain a Certificate of Public Convenience and Necessity, authorizing continuance of interstate operations conducted under the Second Proviso of section 206 (a) (1) of the Interstate Commerce Act, supported by intrastate certificates on file with this Commission. This case is directly related to MC–F 6512, published in the February 19, 1957 issue of the FEDERAL REGISTER.

APPLICATIONS UNDER SECTIONS 5 AND 210a (b)

The following applications are governed by the Interstate Commerce Commission's special rules governing notice of filing of applications by motor carriers of property or passengers under sections 5 (2) and 210a (b) of the Interstate Commerce Act and certain other procedural matters with respect thereto. (FEDERAL REGISTER, Volume 21, page 7339, § 1.240, September 26, 1956.)

MOTOR CARRIERS OF PROPERTY

No. MC–F 6533. Authority sought for control and merger by CONSOLIDATED FREIGHTWAYS, INC., 2029 Northwest Quimby Street, Portland, Oreg., of the operating rights and property of LAMB TRANSPORTATION COMPANY, 22422 South Alameda Street, Long Beach, Calif. Applicants' attorneys: White, Sutherland and White, 1100 Jackson Tower, Portland 5, Oreg., John Mechem, 431 Burgess Drive, Menlo Park, Calif., and Wyman Knapp, 612 Citizens National Bank Building., Los Angeles 13, Calif. Operating rights sought to be controlled and merged: *Road oils* and *liquid asphalts*, in bulk, in tank trucks, as a *common carrier* over irregular routes between points in Arizona, those in California located in and south of Ventura, Los Angeles, and San Bernardino Counties, and points in that portion of Nevada located on and south of U. S. Highway 6. CONSOLIDATED FREIGHTWAYS, INC., is authorized to operate as a *common carrier* in Oregon, Washington, California, Idaho, Utah, Montana, North Dakota, Minnesota, Michigan, Wisconsin, Arizona, Nevada, Illinois, Wyoming and Iowa. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6534. Authority sought for control by SMITH'S TRANSFER CORPORATION OF STAUNTON, VA., 332 Kalorama Street, SE., Staunton, Va., of BURLINGTON TRUCKERS, INC., P. O. Drawer 1438, Burlington, N. C. Applicant's attorney: Macleay, Lynch & Macdonald, 504 Commonwealth Building, Washington 6, D. C. Operating rights sought to be controlled: *Cellulose acetate, rayon yarn*, and *rayon products* and *supplies* used in their manufacture, as a *common carrier* over regular routes between Amcelle (near Cumberland), Md., and Celco (near Narrows), Va., serving no intermediate points; *general commodities*, except household goods as defined by the Commission, petroleum products in bulk, articles of extraordinary value, commodities injurious to other lading, and those exceeding the size and capacity of the equipment, over irregular routes between points in Wythe County, Va., and those in that part of Virginia, West Virginia, North Carolina and Tennessee within 150 miles of Wythe County, Va.; *general commodities*, with certain exceptions including household goods and commodities in bulk, between Burlington, N. C., and Altavista, Va., and between Anderson, Charleston, and Greenville, S. C., on the one hand, and, on the other, Columbia, Greer, Seneca, and Spartanburg, S. C., Augusta and Savannah, Ga., Winston-Salem, N. C., and points in North Carolina within 50 miles of Winston-Salem; *general commodities*, except Class A and B explosives, gasoline in bulk, and household goods as defined by the Commission, from Norfolk and Richmond, Va., to Henderson, N. C., and points in North Carolina within 50 miles of Henderson; *cellulose acetate*, in bags and in bulk, *hosiery, glass bottles, automobile parts, canned goods, cotton seed, cotton seed meal, cotton seed hulls, yarn, bobbins, spools, warp, warp pins, warp beams, warp rolls, cones, containers, textile machinery and parts therefor, rayon yarn and cloth, cotton yarn and warps, empty beams, cases, containers* for rayon and cotton yarn and warps, and *rayon mill and cotton mill machinery, supplies and equipment*, from, to or between points and areas, varying with the commodity transported, in South Carolina, Virginia, North Carolina, Michigan, Indiana, Georgia, Tennessee and Maryland. SMITH'S TRANSFER CORPORATION OF STAUNTON, VA., is authorized to operate as a *common carrier* in Virginia, Maryland, Pennsylvania, Delaware, New York, West Virginia, New Jersey, North Carolina, South Carolina and the District of Columbia. Application has been filed for temporary authority under section 210a (b).

No. MC–F 6535. Authority sought for control by EARL STACKS, Rhinebeck, N. Y., of LIQUID TRANSIT, INC., Rhinebeck, N. Y. Applicant's attorneys: Clarence D. Todd, 1825 Jefferson Place, NW., Washington 6, D. C., and Bert Collins, 140 Cedar Street, New York 6, N. Y. Operating rights sought to be controlled: *Liquid sugar*, in bulk, in tank vehicles, as a *contract carrier* over irregular routes from Yonkers, N. Y., to points in Ohio; *corn syrup*, in bulk, in tank vehicles, from Cleveland, Ohio, to points in New York on and west of New York Highway 21, and those in Pennsylvania on and west of U. S. Highway 219; *grape juice*, unfermented, in tank vehicles, from Geneva, Ohio, to Chicago, Ill. EARL STACKS is not a motor carrier but is affiliated with C. & E. TRUCKING CORP., which is authorized to operate as a *contract carrier* in New York, Vermont, Maryland, Pennsylvania, Virginia, Ohio, and Michigan. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6536. Authority sought for control by SAMUEL L. COPEN, Rhinebeck, N. Y., of C. & E. TRUCKING CORP., 80 Montgomery Street, Rhinebeck, N. Y. Applicant's attorneys: Clarence D. Todd, 1825 Jefferson Place NW., Washington 6, D. C., and Bert Collins, 140 Cedar Street, New York 6, N. Y. Operating rights sought to be controlled: *Sugar syrup*, in bulk, in tank vehicles, as a *contract carrier* over irregular routes from Yonkers, N. Y., to Burlington, Vt.; *liquid sugar, invert sugar, syrup* and *flavorings*, in bulk, in tank vehicles, from New York, N. Y., to Annapolis and Baltimore, Md., Allentown, Harrisburg, and Pittsburgh, Pa., and Alexandria, Va.; *liquid sugar* and *invert sugar*, in bulk, in tank vehicles, from Yonkers, N. Y., to certain points in Pennsylvania; *grape juice*, in bulk, in

tank vehicles, from points in Ashtabula and Lake Counties, Ohio, and Van Buren County, Mich., to New York, N. Y. SAMUEL L. COPEN is not a motor carrier but is affiliated with LIQUID TRANSIT, INC., which is authorized to operate as a *contract carrier* in New York, Ohio, Illinois and Pennsylvania. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6537. Authority sought for purchase of TRANSCON LINES, 1206 South Maple Avenue, Los Angeles, Calif. of a portion of the operating rights of RISS & COMPANY, INC., 15 West Tenth Street, Kansas City 5, Mo. and for acquisition by SCRIBNER BIRLENBACH, also of Los Angeles, of control of such rights through the purchase. Applicants' attorneys: Lee Reeder and Wentworth E. Griffin, both of 1012 Baltimore Bldg., Kansas City 5, Mo. and Alvis Layne, Pennsylvania Bldg., Washington, D. C. Operating rights sought to be transferred: *General commodities*, except livestock and Class A and B explosives, as a *common carrier* over regular routes, between Amarillo, Tex. and Oklahoma City, Okla., serving all intermediate points; *general commodities*, except livestock between Amarillo, Tex. and the site of the U. S. Helium Plant at Soncy, Tex., serving certain intermediate and off-route points. Vendee is authorized to operate as a *common carrier* in Missouri, Illinois, Kansas, Indiana, Oklahoma, New Mexico, Arizona, Texas, California, Arkansas and Tennessee. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6538. Authority sought for purchase by MITCHELL BROS. TRUCK LINES, 2300 Northwest 30th Avenue, Portland, Oreg. of the operating rights and certain property of ALFRED E. STOEHR, EDNA H. STOEHR, ADMINISTRATRIX, doing business as JOHNSON TRUCK LINES, 1017 North Central, Medford, Oreg., and for acquisition by O. J. MITCHELL and B. D. MITCHELL, both of Portland, of control of such rights and property through the purchase. Applicants' attorneys: White, Sutherland and White, 1100 Jackson Tower, Portland 5, Oreg. Operating rights sought to be transferred: *Heavy machinery* and *building materials* as a *common carrier* over irregular routes, between certain points in Oregon, on the one hand, and, on the other, certain points in California; *heavy machinery* between Grants Pass, Oreg. on the one hand, and, on the other, certain points in Oregon; *machinery* between certain points in Oregon, on the one hand, and, on the other, points in Idaho, and between points in Jackson and Josephine Counties, Oreg.; *such commodities* as are and may be required by the Federal Government, between certain points in Oregon and certain points in California. Vendee is authorized to operate as a *common carrier* in Oregon, Washington, Idaho, California and Montana. Application has been filed for temporary authority under section 210a (b).

No. MC–F 6539. Authority sought for control and merger by HAYES FREIGHT LINES, INC., 628 East Adams Street, Springfield, Ill., of the operating rights and property of PURITAN TRANSPORTATION COMPANY, INCORPORATED, Connecticut Avenue, South Norwalk, Conn., and for acquisition by DAVID H. RATNER, also of Springfield, of control of such rights and property through the transaction. Applicants' attorneys: Axelrod, Goodman & Steiner, 39 South LaSalle Street, Chicago 3, Ill. Operating rights sought to be controlled and merged: *General commodities*, with certain exceptions including household goods and commodities in bulk, as a *common carrier* over regular routes, between Hartford, Conn., and New York, N. Y., and between Torrington, Conn., and New York, N. Y., serving all intermediate and certain off-route points; alternate route for operating convenience only between Hartford, Conn., and Thomaston, Conn.; *general commodities*, with certain exceptions including household goods and commodities in bulk, over irregular routes between points in the NEW YORK, N. Y., COMMERCIAL ZONE, as defined by the Commission, and those in New York and New Jersey within 40 miles of City Hall, New York, N. Y.; *chemicals, metals, minerals* and *mineral products*, between Philadelphia, Pa., on the one hand, and, on the other, Wilmington, Del., Trenton and Camden, N. J. HAYES FREIGHT LINES, INC., is authorized to operate as a *common carrier* in Missouri, Iowa, Illinois, Indiana, Ohio, Kentucky, Michigan, Tennessee, Pennsylvania, and West Virginia. Application has been filed for temporary authority under section 210a (b).

No. MC–F 6541. Authority sought for purchase by BILL C. ROBINSON, INC., 711 McCarty Drive, Houston, Texas, of the operating rights of MOSS SMITH, 2301 Hardy Street, Houston, Texas, and for acquisition by BILL C. ROBINSON, ED RICHARDSON, LYNN ROBINSON and W. A. STRANGE, all of Houston, of control of such rights through the purchase. Applicants' attorneys: Charles D. Mathews and Thomas E. James, both of 1020 Brown Building, Austin, Texas. Operating rights sought to be transferred: *Machinery, materials, supplies*, and *equipment*, incidental to, or used in, the construction, development, operation, and maintenance of facilities for the discovery, development, and production of natural gas and petroleum, as a *common carrier* over irregular routes between certain points in Texas. Vendee is authorized to operate as a *common carrier* in Texas and Louisiana. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6544. Authority sought for control by THE PITTSTON COMPANY, 250 Park Avenue, New York 17, N. Y., of BRINK'S, INCORPORATED, 234 East 24th Street, Chicago 16, Ill. Applicant's attorneys: David Teitelbaum, 2 Wall Street, New York 5, N. Y., and Edward K. Wheeler, Southern Building, Washington, D. C. Operating rights sought to be controlled: *Precious metals, jewelry, precious stones, monies, legal tender, stocks and bonds, negotiable and non-negotiable instruments and securities, postage and revenue stamps, currency, coin*, and *other valuable documents and rare objects*, as a *contract carrier* over irregular routes, from, to and between points and areas, varying with the commodity transported, in Delaware, Illinois, Michigan, Indiana, Iowa, Kentucky, Massachusetts, New Hampshire, Connecticut, Missouri, Kansas, New Jersey, New York, Maryland, Pennsylvania, Ohio, West Virginia, Rhode Island, Virginia, Wisconsin, Georgia, Tennessee, Florida, Alabama, Louisiana, California, Nevada, and the District of Columbia. Applicant is not a carrier, but is affiliated with UNITED STATES TRUCKING CORPORATION, which is authorized to operate as a *common and contract carrier* in New York, New Jersey, Connecticut, Delaware, Maryland, Massachusetts, Pennsylvania, Maine, New Hampshire, Rhode Island, Vermont, Virginia, West Virginia and the District of Columbia. Application has not been filed for temporary authority under section 210a (b).

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 57–2330; Filed, Mar. 26, 1957; 8:49 a. m.]

FOURTH SECTION APPLICATIONS FOR RELIEF

MARCH 22, 1957.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 33437: *Hay—Kansas and Oklahoma to Florida and North Carolina.* Filed by W. J. Prueter, Agent, for interested rail carriers. Rates on Hay, carloads from specified points in Kansas and Oklahoma to Cocoa-Rockledge and West Palm Beach, Fla., Durham, Raleigh, Wilmington, and Winston Salem, N. C.

Grounds for relief: Short-line distance formula, grouping, and circuity.

Tariff: Supplement 27 to Agent Prueter's tariff I. C. C. A–3953.

FSA No. 33438: *Caustic soda—Brunswick, Ga., to southern points.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on liquid caustic soda, tank-car loads from Brunswick, Ga., to specified points in Alabama, Florida, Louisiana (east of the Mississippi River), Mississippi, and Virginia.

Grounds for relief: Market competition and circuitous routes.

Tariff: Supplement 196 to Agent Spaninger's tariff I. C. C. 1295.

FSA No. 33439: *Caustic Soda—Baton Rouge, La., group to Pensacola, Fla., group.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on liquid caustic soda, tank-car loads from Baton Rouge and North Baton Rouge, La., to Cantonment, Gonzalez, North Pensacola, and Pensacola, Fla.

Grounds for relief: Market competition and circuitous routes.

Tariff: Supplement 38 to Agent Spaninger's tariff I. C. C. 1526.

FSA No. 33440: *Hides, pelts and skins—Dublin, Ga., to Reading, Pa.* Filed by

O. W. South, Jr., Agent, for interested rail carriers. Rates on hides, pelts and skins, carloads from Dublin, Ga., to Reading, Pa.

Grounds for relief: Circuitous routes.

Tariff: Supplement 15 to Agent Spaninger's tariff I. C. C. 1539.

FSA No. 33441: *Hides, pelts and skins—South Carolina points to Boston, Mass.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on hides, pelts and skins, carloads from Moore and Roebuck, S. C., to Boston, Mass., and group.

Grounds for relief: Short-line distance formula, and circuitous routes.

Tariff: Supplement 15 to Agent Spaninger's tariff I. C. C. 1539.

FSA No. 33442: *Zinc—Southwest to Wardwell, Ohio.* Filed by F. C. Kratzmeir, Agent, for interested rail carriers. Rates on zinc, pig, slab or spelter, and zinc anodes, carloads from specified points in Arkansas, Oklahoma, and Texas to Wardwell, Ohio.

Grounds for relief: Maintenance of rates on stated combination basis and circuity.

Tariff: Supplement 140 to Agent Kratzmeir's tariff I. C. C. 4045.

FSA No. 33443: *Cement—Pennsylvania to Louisiana.* Filed by F. C. Kratzmeir, Agent, for interested rail carriers. Rates on cement, carloads from Northampton (Navarro) and York, Pa., to Monroe and Crowley, La.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 5 to Agent Kratzmeir's tariff I. C. C. 4210.

FSA No. 33444: *Roofing and materials—Oklahoma points to Louisiana and Texas Gulf ports.* Filed by F. C. Kratzmeir, Agent, for interested rail carriers. Rates on roofing and roofing material, carloads from Pauls Valley and Wynnewood, Okla., to Lake Charles, La., Beaumont, Corpus Christi, Galveston, Houston, and Texas City, Tex., for export.

Grounds for relief: Market competition at the named ports with central and Illinois points and circuitous routes.

Tariff: Supplement 79 to Agent Kratzmeir's tariff I. C. C. 4029.

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 57-2328; Filed, Mar. 26, 1957; 8:48 a. m.]